

SUPERIOR COURT OF NEW JERSEY

ESSEX COUNTY: LAW DIVISION

B.B. and LAURA CANNON,
Plaintiffs,

v.

Docket No.

S. BRADLEY MELL, KIMBERLY
RUGGLES MELL, and W.H. MELL
ASSOCIATES, INC., GULFSTREAM

ESX-L-007300-19

CM, L.L.C., GULFSTREAM GM,
L.L.C, AERO CARE SERVICES,
L.L.C., SBM FAMILY TRUST,

Defendants.

VIDEOCONFERENCE DEPOSITION OF

LAURA CANNON

DATE: Thursday, May 5, 2023

TIME: 10:09 a.m.

LOCATION: Remote Proceeding

Pottersville, New Jersey 07979

REPORTED BY: Hilary Bornemann, Notary Public

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A P P E A R A N C E S (Cont'd.)
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1 P R O C E E D I N G S

2 THE REPORTER: Good morning. My name
3 is Hilary Bornemann; I am the reporter assigned by
4 Veritext to take the record of this proceeding. We
5 are now on the record at 10:09 a.m.

6 This is the deposition of Laura Cannon
7 taken in the matter of B.B. vs. S. Bradley Mell,
8 Kimberly Ruggles Mell, Gulfstream CM, L.L.C., et al.
9 on May 4, 2023, via Zoom conference.

10 I am a notary authorized to take
11 acknowledgements and administer oaths in New Jersey.
12 Parties agree that I will swear in the witness
13 remotely, outside of his or her presence.

14 Additionally, absent an objection on
15 the record before the witness is sworn, all parties
16 and the witness understand and agree that any
17 certified transcript produced from the recording of
18 this proceeding:

19 - is intended for all uses permitted
20 under applicable procedural and
21 evidentiary rules and laws in the same
22 manner as a deposition recorded by
23 stenographic means; and
24 - shall constitute written stipulation
25 of such.

1 At this time will everyone in
2 attendance please identify yourself for the record.
3 If counsel doesn't mind, I'll just start with our
4 guest.

5 Ms. Cannon, can you say and spell your
6 name for me, please?

7 MS. CANNON: Laura Cannon, L-A-U-R-A
8 C-A-N-N-O-N.

9 THE REPORTER: Thank you. And are you
10 speaking to me from a city in New Jersey?

11 MS. CANNON: Yes.

12 THE REPORTER: Okay. Counsel, do you
13 mind if she gives me the city?

14 MR. GREIFINGER: The city is fine. No
15 street address. And it's Richard Greifinger,
16 appearing on behalf of Ms. Cannon.

17 THE REPORTER: Thank you very much, Mr.
18 Greifinger.

19 Ms. Cannon, may I have the city,
20 please?

21 MS. CANNON: Pottersville.

22 THE REPORTER: Excellent. Thank you
23 very much.

24 Okay. And then let's see here, why
25 don't we have -- well, why don't we have Ms. Sammons

1 go next.

2 MS. SAMMONS: Yes, thank you. Diane
3 Sammons, with the firm of Nagel Rice, on behalf of the
4 plaintiff, BB.

5 THE REPORTER: Okay, thank you.

6 And then we'll do Mr. Paragano.

7 MR. PARAGANO: Michael Paragano, Nagel
8 Rice, on behalf of the plaintiff.

9 THE REPORTER: Thank you.

10 Mr. Daly?

11 MR. DALY: Paul Daly, from the law firm
12 Hardin Kundla McKeon & Poletto, on behalf of Defendant
13 Aero Care Services, LLC.

14 THE REPORTER: Thank you so much.

15 And then we'll do Mr. McEnroe, please.

16 MR. MCENROE: Harry McEnroe, from
17 Tompkins McGuire, on behalf of the Gulfstream
18 defendants.

19 THE REPORTER: Thank you.

20 And we'll do Mr. Whelan next.

21 MR. WHELAN: Good morning. Pat Whelan,
22 on behalf of Defendants Kim Mell and the SBM Family
23 Trust.

24 THE REPORTER: Okay. And Mr.
25 Greifinger, do you want to redo your appearance or are

1 you happy with what you had?

2 MR. GREIFINGER: I'm fine with what I
3 had.

4 THE REPORTER: Thanks. That's fine,
5 thank you, sir.

6 And Ms. Jasnoff?

7 MR. PEARLSON: Ross Pearlson and
8 Chelsea Jasnoff, from the firm of Chiesa Shahinian &
9 Giantomasi. We're here on behalf of the Kimberly
10 Ruggles Mell 2012 Family Trust.

11 THE REPORTER: Thank you very much, Mr.
12 Pearlson.

13 Okay. And one more time, I'm Hilary
14 Bornemann, the reporter assigned by Veritext to take
15 the record today.

16 Hearing no objection, I will swear in
17 the witness.

18 MS. SAMMONS: Hold on just a second,
19 Hilary. I don't believe you got Mr. Nagel.

20 THE REPORTER: Oh my goodness. I
21 apologize, Mr. Nagel. Can I please get your
22 appearance for the record?

23 MR. NAGEL: Bruce Nagel, Nagel Rice.

24 THE REPORTER: Thank you very much.
25 Again, my apologies. Lots of boxes, lots of faces.

1 Okay. At this time, I will now swear
2 in the witness.

3 Ms. Cannon, will you please raise your
4 right hand? Thank you.

5 WHEREUPON,

6 LAURA CANNON,
7 called as a witness, and having been first duly sworn
8 to tell the truth, the whole truth, and nothing but
9 the truth, was examined and testified as follows:

10 THE REPORTER: Thank you very much.

11 Please go ahead, Counsel.

12 MR. PEARLSON: Thank you.

13 EXAMINATION

14 BY MR. PEARLSON:

15 Q Good morning, Ms. Cannon. My name is Ross
16 Pearlson. And as I indicated, I represent the
17 Kimberly Ruggles Mell 2012 Family Trust. You
18 understand that you're here today for your deposition
19 in the case of BB v. S. Bradley Mell, et. al?

20 A Yes.

21 Q Okay. And you understand that's a lawsuit
22 brought by your daughter, BB, against Bradley Mell and
23 others?

24 A Mm-hmm.

25 THE REPORTER: Is that a yes, Ms.

1 Cannon?

2 THE WITNESS: Yes. I'm sorry, I'll try
3 and do that, sorry.

4 THE REPORTER: Thank you.

5 BY MR. PEARLSON:

6 Q Ms. Cannon, did you have any role in
7 bringing that lawsuit?

8 MR. MCENROE: Objection.

9 MR. GREIFINGER: Objection.

10 THE WITNESS: No. I mean, no.

11 BY MR. PEARLSON:

12 Q Okay. Did you hire the attorneys for your
13 daughter?

14 MR. NAGEL: Objection. I suggest that
15 she doesn't answer any questions relating to
16 engagement of Counsel. That's privileged.

17 MR. PEARLSON: I don't think having a
18 role in hiring counsel is privileged -- the hiring of
19 --

20 MR. NAGEL: Ross, just one second.

21 Mr. Greifinger, you are her counsel,
22 and I'm suggesting you direct her not to answer. I
23 can't because I don't represent her.

24 MR. GREIFINGER: Would you repeat the
25 question, please?

1 MR. PEARLSON: My question was just,
2 "Did you have any role in the hiring of her counsel
3 for this lawsuit?"

4 MR. GREIFINGER: Well, I object to the
5 question. I'm going to leave it at that.

6 MR. NAGEL: So you're going to allow?
7 Well, from my shoes, it's a privileged communication
8 --

9 MR. PEARLSON: -- enough standing to
10 assert any privilege. He made his objection. The
11 witness can answer the question.

12 MR. NAGEL: Ross, I'm going to
13 reconsider, and I'm going to say do have standing.
14 Because to the extent that your next question is going
15 to be, "What lawyers did you meet with?" And
16 potentially it was my firm and others before a firm
17 was selected, then I do have standing because I'm
18 representing a minor, and minors are represented by
19 their parents at the initial stages. So I do have
20 standing --

21 MR. PEARLSON: We haven't gotten to
22 that question yet.

23 MR. NAGEL: All right.

24 MR. PEARLSON: So just let her answer
25 the question.

1 MR. NAGEL: Laura, I have standing now,
2 and I'm directing you not to answer. You can preserve
3 your rights -- we will argue before the Court. Laura,
4 I'm directing you not to answer any questions about
5 the engagement of counsel when you were acting on
6 behalf of your daughter, okay?

7 THE WITNESS: Okay.

8 MR. NAGEL: Okay. Let's move on, Ross.

9 BY MR. PEARLSON:

10 Q Okay. You're following the advice of Mr.
11 Nagel, who is not your counsel, and not answering the
12 question on that basis?

13 MR. NAGEL: You don't have to answer
14 that, Laura --

15 MR. GREIFINGER: I object -- I object.

16 MR. NAGEL: I'm taking the position she
17 was the mother of the minor that was assaulted by
18 someone who you're derivately defending. And I am
19 taking the position -- we'll bring it up to Judge
20 Gardener. I'm taking the position that those
21 inquiries to law firms of the parents is not proper
22 discovery. Yes, Ross, that's my position.

23 MR. PEARLSON: Okay.

24 MR. NAGEL: And again, you're not
25 waiving any rights. You're preserving it. We'll

1 bring it to the Court.

2 MR. PEARLSON: Okay. Let's move on.

3 BY MR. PEARLSON:

4 Q Did you have any role in preparing any of
5 the pleadings in this case?

6 A No.

7 MR. GREIFINGER: Objection, form.

8 THE WITNESS: Sorry.

9 BY MR. PEARLSON:

10 Q Okay. You can still answer the question.
11 Did you have any role --

12 MR. NAGEL: Laura, to the extent -- to
13 the extent you were involved in selecting counsel for
14 your daughter, and to the extent that you might have
15 aided that counsel for your daughter, I'm directing
16 you not to answer.

17 We will bring this up to Judge Gardener
18 as well, Ross.

19 MR. PEARLSON: Okay. I don't think
20 that's privileged anyway.

21 BY MR. PEARLSON:

22 Q Did you review any of the pleadings in this
23 case before they were filed?

24 MR. GREIFINGER: Objection. And I
25 would ask you to define what you mean by a pleading.

1 It may not be known to everybody.

2 BY MR. PEARLSON:

3 Q Okay. Ms. Cannon, did you review the
4 original complaint that was filed?

5 MR. NAGEL: Ms. Cannon, don't answer
6 question -- Ms. Cannon, don't ask -- I'm taking the
7 position that you were acting on behalf of your
8 daughter, a minor. Please don't answer any questions
9 that relate to who you dealt with as a lawyer, what
10 you did in the case. You certainly can talk about the
11 facts that you know, but not facts relating to
12 anything to do with representation in the case.

13 THE WITNESS: Okay.

14 BY MR. PEARLSON:

15 Q Okay, Ms. Cannon, I'm not asking for that.
16 My question is: Did you review the original complaint
17 in this action before it was filed?

18 MR. NAGEL: Don't answer that question,
19 Ms. Cannon, and I'll bring it up to the judge.

20 THE WITNESS: Okay.

21 MR. PEARLSON: How is that privileged,
22 whether she reviewed it?

23 MR. NAGEL: Because it would have been
24 supplied by counsel, and it would have been discussed
25 by counsel. So I'll --

1 MR. PEARLSON: I'm not asking --

2 MR. NAGEL: Ross, Ross, you may
3 ultimately prevail in this issue, but now I am
4 directing her not to answer as the guardian of a minor
5 child who brought an action, and I will deal with it.

6 BY MR. PEARLSON:

7 Q Okay. Did you review the amended complaint
8 in this action?

9 MR. NAGEL: Same direction.

10 BY MR. PEARLSON:

11 Q Have you ever reviewed either the original
12 complaint or the amended complaint in this action?

13 MR. GREIFINGER: Same direction just to
14 the extent there's more than one amended. If you want
15 to clarify that and allow Mr. Nagel to be heard before
16 the witness answers.

17 BY MR. PEARLSON:

18 Q Have you ever reviewed any version of the
19 complaint in this action?

20 MR. NAGEL: Same direction, Laura.

21 MR. PEARLSON: You're directing her not
22 to answer that as well?

23 MR. NAGEL: Yes. Anything to do with
24 an -- with lawyers, yes, I'm giving that direction.

25 MR. WHELAN: I just want to put an

1 objection on the record. I think we're going the same
2 way we went with Plaintiff's first day of deposition.
3 I think it's concerning.

4 I think there are issues here that
5 relate to lawyers involvement and trying to obtain
6 settlement funds at the beginning of this case. And I
7 think that those extortion themes are relevant, and
8 that's why Defendants need to question about
9 attorneys, and question about the lawsuits, and the
10 immediate contacting of lawyers in this. But I just
11 want to state that for the record. I'm hoping this is
12 not going what happened almost two years ago.

13 MR. NAGEL: Patrick, and let me make
14 this clear to Patrick and Ross, my old friend and
15 former tennis partner, let's understand each other.
16 If you guys use the word extortion, that is a
17 violation of your duty not to accuse anybody of a
18 criminal act. That is libel -- listen to me -- that
19 is libel per se. Please, fellas, don't use that word
20 on the record. You're putting yourself in jeopardy.

21 I don't want to see you, as lawyers,
22 having to defend something brought by me. Please, do
23 not use the word extortion in this case, all right?
24 You're not covered by the privilege to make those
25 allegations. Please, let's try to keep it -- let's

1 try to keep it civil. And let's keep Patrick -- let's
2 keep you personally out of this. I don't want to hear
3 that word again.

4 MR. MELL: Hey, Bruce. Hey, Bruce.
5 Hey, Bruce. Didn't Judge Gardener talk about speaking
6 objections? Is this going to happen or should we get
7 Judge Berman back on the line?

8 MR. NAGEL: I have no problem --

9 MR. MELL: This is not your deposition,
10 and you're taking up all the time.

11 MR. NAGEL: Mr. Mell --

12 MR. MELL: I would --

13 MR. NAGEL: Mr. Mell?

14 MR. MELL: Yes.

15 MR. NAGEL: Mr. Mell, do me a favor --

16 MR. MELL: Yes.

17 MR. NAGEL: Why don't you defend your
18 position and don't be a lawyer with me, okay?

19 MR. MELL: I am defending my position.

20 MR. NAGEL: And Mr. Mell --

21 MR. MELL: Your client -- your firm
22 extorted me out of the rip and they know it. Are you
23 kidding me?

24 MR. NAGEL: So Mr. Mell, you're
25 exposing yourself to another claim of libel. Please,

1 don't do this.

2 MR. MELL: Oh, Bruce. Have at it.

3 MR. PEARLSON: Bruce, let me just make
4 my record and then we'll move on. First of all, we
5 have none of these issues in Mr. Cannon's deposition.
6 There was no assertion of privilege as to any of these
7 issues. It's not privileged whether at any time she
8 reviewed the pleadings in this action and is familiar
9 with the pleadings in this action. That was my
10 question.

11 I'm not asking about any conversations
12 she had with lawyers. I'm not asking about
13 involvement of lawyers. It has nothing to do with
14 lawyers. She can answer that question. I'm standing
15 by your instruction on that.

16 MR. NAGEL: Yeah. What I'm doing is
17 I'm standing by my instruction regarding the
18 engagement of lawyers, her interaction with lawyers,
19 and her review of anything that was filed before or
20 after. And I'm especially standing by it with the
21 statement by both Mr. Mell and Mr. Whelan that there
22 is a "extortion" involved in this case. That is a
23 disturbing allegation, which is now exposing both of
24 them to a claim individually. I don't want to go down
25 that route, so let's go forward.

1 MR. WHELAN: I must respond, Ross, I'm
2 sorry to interrupt. But there is evidence produced in
3 this case that a lawyer on behalf of the plaintiff's
4 family asked for money within days of the disclosure.
5 There is evidence of extortion in this case, and I'm
6 not afraid to use the word. And I think when people
7 look at that, those correspondence, communications
8 that we've requested, it'll be clear.

9 MR. NAGEL: Patrick, I'm really sorry
10 -- I'm really sorry that you said on the record you're
11 not afraid to use that word because what I will
12 suggest you do at the first break is take a deep
13 breath, open up the law books, and understand what
14 you're saying. It ain't good, Patrick, please. I
15 know you're involved. I know you're tied up in
16 representing your client. I get that --

17 MR. MELL: How long do we have to sit
18 here and listen -- how long do we have to sit here and
19 listen to Bruce just babble?

20 MR. PEARLSON: Well, Bruce, I just want
21 to be clear, we're going to get through this
22 deposition. You can take up as much time as you want
23 with your speaking objection, et. cetera, and I think
24 invalid objections. But we're going to get through
25 this deposition. If Ms. Cannon has to come back

1 because of you, so be it, but we're going to get
2 through it.

3 So I just want to have an answer --
4 you're directing her not to answer the question, "Have
5 you reviewed, at any time, the pleadings in this case,
6 the complaint, any version of the complaint?" Are you
7 standing by that objection?

8 MR. NAGEL: I am, Ross, because it
9 involves involvement of lawyers. Yes, I am. And we
10 can bring this to Judge Berman.

11 BY MR. PEARLSON:

12 Q Okay. Ms. Cannon, have you ever been
13 deposed before?

14 A No.

15 Q Okay. So let's go over some of the ground
16 rules. The first thing is that you were sworn under
17 oath. It's the same oath as if you were testifying at
18 trial. Do you understand that?

19 A Yes.

20 Q Okay. And I'll be asking you questions, and
21 you'll be giving me answers. Do you understand that?

22 A Yes.

23 Q Okay. And do you understand that, as the
24 court reporter said, that you should wait until I
25 finish my question before giving your answer?

1 A Yes.

2 Q And I'll also try not to interrupt you,
3 okay?

4 A Okay.

5 Q And from time to time, counsel will be
6 making objections, as Mr. Nagel just did. I would ask
7 you that unless you're directed not to answer the
8 question, that you answer the question that I ask,
9 okay?

10 A Okay.

11 Q And as the court reporter also indicating, a
12 non-verbal response -- she's trying to take down a
13 record of what's going on today. So if you give a
14 non-verbal response, like a nod of the head or a shrug
15 of the shoulders, it's not going to show up in the
16 transcript. So I'll ask that you give verbal
17 responses to my question, okay?

18 A Okay.

19 Q If at any time you don't understand a
20 question, I'll ask that you ask me to clarify it. If
21 you answer a question, I'll assume you understood it,
22 okay?

23 A Okay.

24 Q If at any time you need a break, just let me
25 know and we'll take a break. It's not an endurance

1 contest. And I would just ask that you at least give
2 me an answer to the question that's pending before we
3 take the break, okay?

4 A Okay.

5 Q And as indicated previously, this deposition
6 is being conducted by Zoom. Is there any -- where are
7 you located, the city, again?

8 A Pottersville.

9 Q Are you by yourself in the room where the
10 deposition is being conducted?

11 A Yes.

12 Q Do you have any documents in front of you of
13 any kind?

14 A No.

15 Q Okay. And Mr. Greifinger is obviously not
16 with you in that same room, correct?

17 A No, he's not.

18 Q What did you do today to prepare for -- what
19 did you do to prepare for your deposition today?

20 A I met for a little while with my attorney.

21 Q Okay. And when you say your attorney, Mr.
22 Greifinger?

23 A Yes.

24 Q And how long did you meet with him?

25 MS. SAMMONS: Objection.

1 THE WITNESS: Can I answer that? A
2 couple hours.

3 BY MR. PEARLSON:

4 Q Okay. And other than -- did you review any
5 documents in preparation for today?

6 A We went over some text messages, yeah.

7 MR. GREIFINGER: And now I'm going to
8 object. And this might not be clear to laypeople, but
9 when there's the danger of that type of response about
10 what we went over, so it's been established there's
11 been a meeting. And I will ask you not to probe into
12 anything that occurred at that meeting.

13 BY MR. PEARLSON:

14 Q Ms. Cannon, other than speaking to your
15 counsel, did you talk to anybody else about the
16 substance of your testimony today?

17 A No.

18 Q Did you talk to your husband Anthony about
19 his deposition?

20 A Well, I asked him how it went, and how he
21 felt, and what it was like, yeah.

22 Q All right. What did he tell you about his
23 deposition?

24 A Well, he thought it went pretty well.

25 Q Did he discuss the substance of what he

1 testified to with you?

2 A No, not really. I mean, we know what the
3 substance is pretty much.

4 Q Well, that's not my question. Did he ever
5 -- did he discuss in any way the substance of what I
6 asked him about --

7 A No.

8 Q -- at his deposition?

9 A No.

10 Q Other than Anthony, did you speak to anybody
11 else, outside of counsel, about your deposition?

12 A No.

13 Q Did you speak to either of your daughters?

14 A No.

15 Q Okay. Ms. Cannon, how old are you?

16 A Fifty-five.

17 Q And what's your date of birth?

18 A February 17, 1968.

19 Q And are you married?

20 A Yes.

21 Q And what's your husband's name?

22 A Anthony Cannon.

23 Q And how long have you and Anthony been
24 married?

25 A Twenty-seven, twenty-eight, I think.

1 Twenty-seven years, maybe.

2 Q And do you have any children?

3 A Yes, three daughters.

4 Q And what are their names, ages, and dates of
5 birth?

6 A Ella, 25 --

7 MR. GREIFINGER: Hold it. I'm just
8 going to object to dates of birth. They're personal
9 identifiers. Because of the nature of the case, and
10 because of past intimidation, and the fact that
11 there's really no benefit to defense counsel in
12 knowing that.

13 MR. PEARLSON: Well, I disagree. The
14 fact is it's important to -- because some of the
15 events here allegedly took place on birthdays.

16 BY MR. PEARLSON:

17 Q But why don't you just tell me the names and
18 ages of your children?

19 MR. GREIFINGER: Ages are fine, grades
20 are fine.

21 THE WITNESS: Ella, 25. BB, 21. And
22 Grace, 19.

23 BY MR. PEARLSON:

24 Q Okay. And where do you currently reside?

25 A Pottersville.

1 Q And do your daughters live there with you?

2 A Sometimes. They're away at different
3 things.

4 Q Okay. Why don't you tell me what your
5 daughters are doing and where they live now?

6 A Well, Ella works and --

7 MS. SAMMONS: Objection to the actual
8 location --

9 THE WITNESS: Yeah.

10 MS. SAMMONS: -- of where the girls
11 live.

12 MR. GREIFINGER: Yeah, I'll join in
13 that. Thank you, Diane.

14 BY MR. PEARLSON:

15 Q Ms. Cannon, can you just tell me where your
16 daughters, generally, where they live and --

17 A New York -- Ella's in New York. BB's in
18 Pennsylvania at school. And Grace is -- she was away
19 in another country volunteering, but now she's back
20 here before she goes away to school.

21 Q And you said they live with you sometimes?

22 A Well, yeah. They don't live -- sorry?

23 Q They don't live with you full-time?

24 A Well, because they're at college, and they
25 have their work, and all of that, yeah.

1 Q Okay. And how long have you lived in
2 Pottersville?

3 A Maybe it's about a year coming up. Not
4 quite a year, I think.

5 Q And where did you live before that?

6 A Whitehouse Station.

7 Q And how long did you live in Whitehouse
8 Station?

9 A I believe we bought it in 2007.

10 Q Okay. Is that where you raised your
11 children?

12 A Mm-hmm. Yes. Sorry, yes.

13 Q And that was a house, I take it?

14 A A house, yeah.

15 Q Okay. And is that where you lived in the
16 period from 2015 to 2018?

17 A Yes.

18 Q Okay. And to what degree did your children
19 live there with you as well?

20 A Full-time. Well, Ella was going to college
21 -- at some point she went to college, so I guess, then
22 she was at college.

23 Q Now, Ms. Cannon, are you currently employed?

24 A Yes.

25 Q Okay. What do you do?

1 A I'm an advocate for sexual assault victims
2 and domestic violence victims.

3 Q And how long have you done that?

4 A Maybe two years, a little under two years,
5 maybe.

6 Q And do you work for a particular
7 organization?

8 A Yes, I do.

9 Q What's the name of the organization?

10 MS. SAMMONS: Objection.

11 THE WITNESS: Safe is the name.

12 BY MR. PEARLSON:

13 Q And are you an employee of Safe?

14 A Yes. I'm now a part-time employee, but I
15 was more of a full-time employee before.

16 Q I'm sorry. You were a full-time employee
17 and now you're a part-time employee?

18 A Yeah.

19 Q Okay. Prior to working for Safe -- and you
20 said your role at Safe is as a victim advocate. Is
21 that correct?

22 A Mm-hmm.

23 THE REPORTER: Yes?

24 THE WITNESS: Yes. I'm sorry.

25 //

1 BY MR. PEARLSON:

2 Q Okay. Now, prior to working for Safe, where
3 did you work?

4 A I worked for Turpin Real Estate.

5 Q Okay. Where is Turpin Real Estate located?

6 A Oldwick, New Jersey.

7 Q And how long did you work for Turpin Real
8 Estate?

9 A This is going to be a guess. I'm sorry, I
10 really don't remember when I started.

11 MR. GREIFINGER: Let me step in. I
12 don't know that we've had an adequate instruction on
13 that. And Ross, either -- I don't mind doing it
14 unless you prefer --

15 BY MR. PEARLSON:

16 Q Ms. Cannon, we don't want you to guess. To
17 the extent that you can give an approximation, a
18 reasonable approximation, that would be great. So how
19 long did you -- first of all, how long did you work
20 for Turpin, approximately?

21 A Approximately, it would be five or six
22 years, I think.

23 Q And do you recall the years you worked for
24 Turpin?

25 A I'm not great with years. I don't remember

1 the years. I mean, obviously I could find it and
2 figure it out, but I don't remember off the top of my
3 head.

4 Q Were you working for Turpin in the years
5 2015 to 2018?

6 A Yes, up until 2017, really.

7 Q When in 2017 --

8 A -- 2017 -- through most of 2017.

9 Q I'm sorry. Were you saying you were
10 employed by Turpin basically throughout 2017?

11 A Yes.

12 Q Okay. And what was your position with
13 Turpin?

14 A I was a sales agent.

15 Q And what business is Turpin in?

16 A Real estate.

17 Q And were you a salaried employee, or were
18 you paid by commission, or both? How were you
19 compensated?

20 A Commission.

21 Q And what hours did you work when you were
22 employed by Turpin? And we're talking about the
23 period of 2015 to 2017.

24 A Well, there weren't set hours because you
25 just go when your clients need you. It's like all

1 different hours.

2 Q Did you go into an office?

3 A Yes.

4 Q How often did you go into the office?

5 A Pretty often. I mean, definitely a few
6 times a week or once -- you know, a lot, a pretty good
7 amount.

8 Q Can you approximate the number of hours you
9 worked for Turpin --

10 A Per week? I mean, it really varies
11 depending on if you have a house that's listed, or if
12 you have a client that's really busy, like, looking at
13 houses. It's so different every -- all the time.
14 It's hard to estimate that.

15 Q Do you have any idea how many sales you
16 actually made in 2015 to 2017?

17 A No.

18 MR. GREIFINGER: Objection, relevance.

19 You may answer.

20 THE WITNESS: I don't have any idea.

21 BY MR. PEARLSON:

22 Q Okay. Was it -- let's start with 2015. Do
23 you have any idea, was it more than five?

24 MR. GREIFINGER: Objection. If a
25 witness says, "I don't know how many" --

1 MR. PEARLSON: Richard, are you going
2 to make speaking objections as well?

3 MR. GREIFINGER: I'm going to object to
4 the form. I'm sorry.

5 BY MR. PEARLSON:

6 Q Okay, Laura -- Ms. Cannon, do you have any
7 idea whether you had less than five sales in 2015?

8 A I would be guessing. If you want me to
9 answer I can -- I don't remember how many I did.

10 Q Is the same true for your recollection as to
11 2016, 2017 --

12 A Yes.

13 Q -- you don't recall the number of sales?

14 A No.

15 Q Okay. You can't approximate?

16 A It would be a complete guess. If you want
17 me to guess, I can guess.

18 MS. SAMMONS: Objection.

19 BY MR. PEARLSON:

20 Q No, I don't want you to guess. Now, Ms.
21 Cannon, where did you daughter, Ella, go to high
22 school?

23 A Morristown Beard.

24 Q Okay. And what years was she -- did she
25 attend Morristown Beard?

1 A Well, she graduated in 2016, I'm pretty
2 sure, so that would have been her graduation year.

3 Q And what grades did she attend Morristown
4 Beard?

5 A All four years.

6 Q Okay. And that's a private school?

7 A Yes.

8 Q Okay. And did you and your husband pay the
9 tuition for that?

10 A Yes.

11 Q Did you receive any help or assistance from
12 anyone with respect to her tuition?

13 A No. Sorry.

14 Q Okay. You said she graduated in 2016?

15 A Yes. I'm pretty sure, yes.

16 Q And was Ella living with you at your house
17 in, I believe you said it was Whitehouse Station, in
18 middle school and high school?

19 A Yes.

20 Q How would you describe your relationship
21 with Laura in middle school and high school?

22 MS. SAMMONS: Objection. I think you
23 said with Laura --

24 MR. PEARLSON: I know, let me take that
25 back.

1 BY MR. PEARLSON:

2 Q Ms. Cannon, how would you describe your
3 relationship with Ella during middle school and high
4 school?

5 A I mean, pretty good. Pretty normal for a
6 teenage girl and a mom. I mean, but we were close.
7 You know, normal.

8 Q When you say "normal," how often would you
9 -- she was living with you full-time?

10 A Yes.

11 Q How involved were you in her activities?

12 A I mean, pretty -- very involved -- pretty
13 involved.

14 Q Were you the one who was primarily
15 responsible for driving her to her activities?

16 A Well, my husband did a lot of driving, like,
17 before school. Depending on which school she was at
18 at the time because you're saying middle school and
19 high school, and they were two different locations.
20 So I would drive her, but he did also drive a lot. We
21 both did.

22 Q Okay. Did you speak a lot to her during
23 middle school and high school?

24 A Yeah.

25 Q Did you make a point of knowing where she

1 was in middle school and high school?

2 A Yes.

3 Q Did you have any kind of -- did she have a
4 cell phone?

5 A Yes.

6 Q Did you have any kind of locator on her cell
7 phone?

8 A I can't remember when I first put on the
9 tracker.

10 Q Okay. When you refer to it as a "tracker"
11 can you explain to us --

12 A Well, not a tracker, but I -- you know, I
13 can't remember was it first Find My Friends, like Find
14 My iPhone or whatever, you can use that. And then --
15 which I guess was always maybe on the phone. And then
16 there's Life 360, which I don't remember when I put
17 that on, but one or the other.

18 Q Okay. Just to be clear, you put some sort
19 of device or used some sort of app with respect to her
20 phone, where you could track her whereabouts, correct?

21 A So I believe Find My iPhone is always on
22 your iPhone. So that was there, and then I put on,
23 eventually, another Life 360 for my home -- for --
24 yeah.

25 Q Okay. So first, the Find My Phone, were you

1 able to determine her whereabouts from her cell phone
2 through the Find My Phone?

3 A Yeah, I could have, yeah.

4 Q Okay. And was that always on her cell
5 phone?

6 MS. SAMMONS: Objection --

7 THE WITNESS: Yeah, I mean, I don't
8 know if she could --

9 MR. GREIFINGER: Hold it, please. I
10 think the witness testified to an app that was on her
11 daughter's phone. Can we just be a little more clear
12 about this?

13 MR. PEARLSON: Sure.

14 BY MR. PEARLSON:

15 Q So Ms. Cannon, I guess the first question
16 is: Did Ella have a cell phone throughout middle
17 school and high school?

18 A Yes.

19 Q Okay. And was the Find My Phone app
20 activated, so you could track her whereabouts through
21 middle school and high school?

22 A So I don't know if it was activated. I
23 didn't -- for a very long time, I didn't -- when she
24 was younger, I didn't need to track her or want to
25 track her --

1 Q Now, at some point you developed the need to
2 track her. Is that correct?

3 MS. SAMMONS: I'm going to object.

4 MR. GREIFINGER: Object to form.

5 You can answer.

6 THE WITNESS: I mean, need, I don't
7 know if that's the word, but desire or want to, maybe.

8 BY MR. PEARLSON:

9 Q Okay. And was there a particular event that
10 made you want to start using the Find My Phone app?

11 A No, I don't think so, a specific event, no.

12 Q And do you have any idea when you activated
13 the Find My Phone app, so you could track her
14 whereabouts?

15 A I don't --

16 MR. GREIFINGER: Objection.

17 MS. SAMMONS: Object to form.

18 MR. GREIFINGER: Yeah, I don't think
19 that was her testimony.

20 MR. PEARLSON: She answered the
21 question.

22 BY MR. PEARLSON:

23 Q Ms. Cannon, you also indicated that at some
24 point you added a different means of tracking Ella's
25 phone, correct?

1 A Yes.

2 Q Okay. Why did you do that?

3 A Well, I believe it was because that app let
4 me sort of see my whole family at one time. Like,
5 it's called Life 360, and you can watch everybody.

6 Q Okay. And why did you -- was there a
7 particular reason why you wanted to be able to watch
8 everybody in your family?

9 A No, my friend, actually, a good friend of
10 mine, just mentioned that she had it on her phone with
11 her family, and I thought it was good.

12 Q Okay. Do you know when you put that in your
13 phone?

14 A I don't remember.

15 Q Do you know if it was on your phone while
16 Ella was in high school?

17 A It might have been for part of high school.
18 Yeah, I can't remember when I put it on.

19 Q Now, in addition to, you know, speaking to
20 Laura -- excuse me -- to Ella, and driving her to
21 activities, did you also text her?

22 A Yes.

23 Q Did you call her?

24 A Yes, sometimes, yeah.

25 Q Would you say -- how often would you text

1 her when she was in high school?

2 A I don't know how -- you mean how much a day?
3 I mean, I definitely texted her every day. I don't
4 know how much a day.

5 Q How about calling her?

6 A I mean, we probably spoke most in person,
7 and probably texted. I mean, unless she needed
8 something or we had to have a specific conversation.
9 We didn't call that much, I don't think --

10 Q Did you, in any way -- was Laura on -- I
11 keep saying that, sorry. Was Ella on social media in
12 high school?

13 A They were like starting, yeah, social media,
14 yeah.

15 Q Do you know what forms of social media she
16 used in high school?

17 A I feel like it was Facebook and Instagram,
18 maybe.

19 Q Did you follow her use of social media?

20 A Well, it was -- I feel like it was really
21 new then, but I believe I was, like, friends with them
22 on Facebook or, you know, I followed them on
23 Instagram, so I could see what they were posting and
24 that kind of thing.

25 Q And did you review what they were posting?

1 And when you say "they," you're saying for all your
2 daughters?

3 A Well, yeah, yeah. If they would go on
4 Instagram, I would probably be following them on
5 Instagram?

6 Q Okay. So is it fair to say you were viewing
7 their posts on --

8 A Yeah. I would view their posts on Instagram
9 and Facebook, yeah.

10 Q Okay. Now, after you said that Ella
11 graduated from high school in 2016, did she go to
12 college after that?

13 A Yes.

14 Q And where did she go to college?

15 A Colby College.

16 Q Okay. And she graduated from Colby?

17 A Yes, she did.

18 Q Okay. When did she graduate?

19 A So she would have graduated, I guess, 2020,
20 but it was delayed because of Covid. So I think 2020.
21 I should know. It was delayed by Covid, so her actual
22 graduation wasn't until later, but yeah.

23 Q Okay. And did you and your husband pay the
24 tuition for Colby?

25 A No.

1 Q Okay. Who paid the tuition for Colby?

2 A Ella's grandfather set up a -- you know, 526
3 or something. There's an account for money for
4 college.

5 Q Okay. And did anyone, to your knowledge,
6 contribute to Ella's education at Colby, besides your
7 father-in-law?

8 A No. We paid for part and he paid for part.
9 But nobody else paid for anything.

10 Q Okay. And where did your daughter, BB, go
11 to high school?

12 A Gill St. Bernard most of the time, and then
13 Proctor for a year.

14 Q Okay. And first in terms of is there any
15 reason she went to Gill St. Bernard versus Morristown
16 Beard?

17 A She had good friends that went to Gill, and
18 it was close by. It just made sense, and it was a
19 good school, and she liked it.

20 Q And is that a private school also?

21 A Yes.

22 Q And what year did she start there?

23 A I don't remember, she was little. Maybe
24 like third grade -- second grade, third grade. I
25 don't remember.

1 Q And what year did she graduate from high
2 school?

3 A Hold on. Maybe it would have been 2019. I
4 don't remember.

5 Q Okay. And did you and your husband pay the
6 tuition for Gil St. Bernard?

7 A Yes.

8 Q And did you get any assistance from anybody
9 for that?

10 A No.

11 Q And was BB living with you -- well, first of
12 all, you said that she switched to Procter at some
13 point.

14 A Mm-hmm.

15 Q When was that?

16 A That was after her junior year. So she was
17 in Procter for -- so senior year.

18 Q And why did she switch schools?

19 A Because she couldn't comfortably stay at the
20 school she was at.

21 Q Okay. And was that because some of the
22 events relating to claims on which this lawsuit are
23 based?

24 A Yes.

25 Q Okay. And did she finish up and graduate

1 from Procter?

2 A Yes.

3 Q Is Procter a boarding school?

4 A Yes.

5 Q And prior to her going to Procter her junior
6 year, was she living with you?

7 A Yes --

8 MS. SAMMONS: -- object. I think she
9 said her senior year. Maybe I'm mistaken.

10 BY MR. PEARLSON:

11 Q So prior to the time she attended Procter
12 her senior year, did BB live with you full-time at
13 Whitehouse Station?

14 A Yes.

15 Q And how would you describe your relationship
16 with BB during her high school years?

17 A Very good, very good. We talked about
18 everything. We were very, very close.

19 Q Okay. When you say, "We were very, very
20 close," how would you describe -- how often did you
21 speak on the phone with BB?

22 A We didn't speak on the phone. We spoke in
23 person.

24 Q Okay. And would you do that every day?

25 A Yes. I would speak to my daughter every

1 day.

2 Q And did you text as well?

3 A Yes.

4 Q And would you make a point of knowing where
5 she was in high school?

6 A I mean, yes, I knew where she was. Yeah.

7 Q Okay. How did you know where she was in
8 high school?

9 A Well because I was doing most of the driving
10 for her at that time or my husband was.

11 Q So is it fair to say she was dependent on
12 you or your husband to get around?

13 MS. SAMMONS: Objection, Ross. Are we
14 talking about all four years because we know at some
15 point she got a license?

16 BY MR. PEARLSON:

17 Q We're talking about when she was living with
18 you, Ms. Cannon. When she was living with you --

19 A Before she got her license, we would have
20 been driving her around.

21 Q Okay. And besides the fact that you were
22 driving her around, did you make any other efforts to
23 make a point of knowing where BB was in high school?

24 A I always -- I knew where she was, yes. She
25 would tell me where she was going, and that's where

1 she would be. Yeah.

2 Q And would you also use the apps you
3 described earlier with respect to -- strike that.
4 First of all, did BB have a cell phone throughout high
5 school?

6 A Yes.

7 Q And did you use those apps that you referred
8 to previously in your testimony in connection with
9 monitoring BB's whereabouts?

10 A I don't remember when I started. I mean,
11 honestly there was no concern of where BB was. I
12 always knew where she was. I mean, I don't know when
13 I started to look at her phone. I don't remember.

14 Q Okay.

15 A I just always knew where she was. I don't
16 know how to say it any different.

17 Q Well, going back to Ella, when Ella was in
18 high school, what did you do to know who she was with?

19 A Well, I knew her schedule. I knew she was
20 at school, and then I knew she had swimming, or field
21 hockey, or lacrosse. And then I knew what time she
22 had to be home and then she was home.

23 So I mean, I knew that and I can't remember
24 when I might have started -- I mean, every now and
25 then I might have checked Find My Friends. I don't

1 remember. There was just never a concern. They were
2 always where they were supposed to be. I don't know
3 how to explain.

4 Q Do they have --

5 A I just knew.

6 Q Yeah. Let's just break it down for Ella.
7 She had school. And did she have activities after
8 school?

9 A Yeah --

10 Q And that was --

11 A -- sports usually.

12 Q Okay. And were you the -- were you dropping
13 her off and picking her up at her activities after
14 school?

15 MR. GREIFINGER: At what point in time
16 are we talking about?

17 MR. PEARLSON: We're just talking about
18 during high school.

19 THE WITNESS: Well, until she got her
20 own license it would have been mostly my husband
21 because he worked nearby there. And he did most of
22 the picking up and dropping off.

23 BY MR. PEARLSON:

24 Q Okay. How about with respect to BB, what
25 was her schedule like during high school?

1 A Yeah, she had sports too.

2 Q Okay. And was it any different with respect
3 to who was handling the driving for BB before she got
4 her license?

5 A Yeah, that was more mixed, I'd say, between
6 me and Tony, depending on what was happening.

7 Q Okay. And what did you do, if anything,
8 during while BB was in high school to monitor who she
9 was with?

10 A Well, as I said, we did all the driving, so
11 I knew where she was. I was picking her up. I knew
12 where she was. She wasn't at any place that was out
13 of the ordinary or anything.

14 Q Would that have been true, for example, if
15 she was sleeping over at a friend's house?

16 A Well, yeah, I would have driven her and
17 picked her up, yeah, or Tony would have. One of us
18 would have done it probably.

19 Q And the same goes for Ella, if they had a
20 sleepover, one of you would be dropping them off?

21 A Usually, yeah, if they were --

22 Q When they had sleepovers, did you check in
23 with the parents to see if they were home?

24 MR. GREIFINGER: At what time?

25 THE WITNESS: I would have --

1 MR. GREIFINGER: Objection. What time
2 period are we talking, please?

3 BY MR. PEARLSON:

4 Q Let's break it down. When Ella was in high
5 school, you know, if she had a sleepover, would you
6 check with the parents to see if they were home when
7 she was having a sleepover?

8 A In high school, did I check with the
9 parents? Normally, she only slept at families that I
10 knew pretty well, her close friends, generally. I
11 don't think I ever had a high school parent call me to
12 check if their child was sleeping over. Younger,
13 yeah.

14 I might have occasionally checked if they
15 were sleeping at a place that I wasn't as comfortable
16 with. But overall, in high school, I didn't --
17 parents didn't really call each other to check, unless
18 maybe it was a party. Like if they were going to a
19 party and sleeping over, then you would call and
20 check.

21 Q Was the same true for BB, that you wouldn't
22 call to check with the parents?

23 A I mean, sometimes I would call to touch base
24 because they were my -- we were friendly. You know,
25 just like, "Hey. Thanks for having BB over." Yeah, I

1 did that with Ella too. "Thanks for having Ella
2 over." But not like a check, just like a check in.
3 Yeah, check in, I would do that.

4 Q Is it fair to say with BB that you made a
5 point of trying to know where she was during high
6 school?

7 A I made a point to always know where both --
8 where everybody was.

9 Q Okay. Ms. Cannon, did you have a security
10 system in your house at Whitehouse Station?

11 A We --

12 MR. GREIFINGER: At what point? Can we
13 have a timeframe, please?

14 BY MR. PEARLSON:

15 Q Just generally, did you have a security
16 system at any time while you lived at Whitehouse
17 Station?

18 A We did have ADT, that type of thing, yeah.

19 Q Okay. When you say ADT, was it an alarm
20 system?

21 A Yes, an alarm system.

22 Q Did it have a code that had to be entered to
23 go into the premises?

24 A Yeah.

25 Q And at some point -- do you recall, did you

1 have that ADT system in place while Ella and BB were
2 in high school?

3 A Yeah.

4 Q And there was an alarm code for that, right?

5 A Yes, but unfortunately I probably wasted a
6 lot of money because I probably set it three times.

7 Q So you had an alarm system, but you never
8 set it?

9 A Yes.

10 Q Okay. What about, did you ever have any
11 kind of video security system installed at Whitehouse
12 Station?

13 A We had one Arlo camera that was on a tree in
14 front of my house. But it was run on battery, so it
15 very often ran out of batteries, so it wasn't super
16 trustworthy. We then installed more Arlo cameras
17 after -- after December 4th.

18 Q After December 4th of which year?

19 A The year that BB -- that we found out about
20 BB, 2017.

21 Q Okay. So prior to that, you did have -- do
22 you know when you installed the one Arlo camera?

23 A No, it was there a long time. It was on and
24 off for years. It was really not -- it wasn't
25 anything -- we didn't find it -- we didn't have any

1 fear. We didn't really need it. I just put it up for
2 -- I don't know why, but it was always on and off. It
3 wasn't a solid, like, camera. It was on battery. I
4 don't remember how many years though. It was there
5 for a while.

6 Q Through that camera, could you monitor who
7 came in and out of your driveway?

8 A Like 50 percent. It wouldn't catch a lot of
9 people that came through. You'd have to see my
10 driveway to understand and where the camera was. But
11 it would only catch people that came into one section
12 of our driveway, not the ones that went back to the
13 barn.

14 Q Okay. Was the purpose of it though to
15 monitor who was coming and going from your house?

16 A Yes. Yeah.

17 Q And how would you be able to review what the
18 camera was showing?

19 A I could go on the app and look at the
20 videos.

21 Q Okay. So is it -- I don't know if you know
22 what Ring is, but is it similar in the sense that you
23 have an app and you can see what the camera is
24 showing?

25 A Yeah, kind of. Yeah, it's like recorded

1 videos or what's happening at the time I think you can
2 see there. Yeah.

3 Q And would it notify you if someone was
4 coming down your driveway, the camera?

5 A I don't think I had the notifications on
6 because we really were very comfortable, and we didn't
7 really need a video camera at the time.

8 Q And I to understand from your answer the app
9 could notify you --

10 A Yes.

11 Q -- but you didn't have the notification on
12 --

13 A Yes.

14 Q -- is that correct?

15 A That is correct.

16 Q Okay, Ms. Cannon. I'm just going to ask you
17 to wait until I finish my question --

18 A Sorry.

19 Q -- before you -- now, you said that your --
20 did each of your daughters, and this is referring --
21 including Grace now, have cell phones while they were
22 in middle school and high school?

23 A Yes, yes. I think, yes.

24 Q Okay. And did they -- were those covered
25 under a family plan of any kind?

1 A Our Verizon plan, yeah.

2 Q Okay. So it was one plan that had your cell
3 phone on it?

4 A And the girls. But not Tony's. Tony was on
5 a work plan.

6 Q Okay. And you said that was with Verizon?

7 A Yes.

8 Q And you paid for those phones?

9 A Yes.

10 Q And who would get the bills for those
11 phones?

12 A Maybe they'd be addressed to me. Probably,
13 yeah.

14 Q Okay. And did you ever review the cell
15 phone bills?

16 A Not usually, no.

17 Q Okay. And did you ever look at the girls --
18 ask the girls to see their cell phones to see who they
19 were communicating with?

20 A No, I didn't. That was -- no. That was a
21 violation, I would have thought, at that time. I
22 mean, I trusted them.

23 Q Okay. So you never reviewed their texts?

24 A Uh-uh.

25 THE REPORTER: Is that a no?

1 THE WITNESS: I'm sorry, I'm sorry.

2 No, I didn't. I'm sorry. I don't know why I can't
3 remember to do that.

4 BY MR. PEARLSON:

5 Q Just to be clear, Ms. Cannon, that's true
6 that you never did that at any time with respect to
7 any of your daughters?

8 A Asked for their phone and say, "Let me look
9 through all your texts"?

10 Q Yes.

11 A No. I don't think I ever did that, that I
12 remember.

13 Q Or, "Let me look through your pictures"?

14 A No. I don't think I ever did that to them,
15 no.

16 Q And you never asked them to review what they
17 were doing on social media?

18 MS. SAMMONS: Objection, form.

19 THE WITNESS: No. I mean, we talked
20 about social media. We talked about don't post
21 anything inappropriate or don't -- like, we discussed
22 those. But I didn't ask for their phones. I could
23 look at their posts, so I knew what they were posting.
24 But I didn't know there was anything beyond what they
25 were posting. I didn't find out there was a secret

1 Snapchat until after I found out about BB. So I
2 reviewed what I could review at the time that I knew
3 about.

4 BY MR. PEARLSON:

5 Q Okay. Now, Ms. Cannon, when did you first
6 hear the name Steven Bradley Mell or Brad Mell?

7 A Well, freshman year for Ella we met Eliza
8 Mell. And then I would have heard, maybe, Mr. Mell
9 then.

10 Q Okay. So the first time you heard of him
11 was through his daughter, Eliza. Is that correct?

12 A Yes.

13 Q And how was it that you came to learn about
14 him through Eliza?

15 A We might have met maybe at a game one time,
16 a field hockey game, very briefly. That was -- there
17 was very little interaction at that time with him. I
18 never saw him. I never -- like, it was once probably.

19 Q Okay. And this was her freshman year --

20 A Yes.

21 Q -- at Morristown Beard?

22 A Yes.

23 Q And is it fair -- I'm assuming that Eliza
24 was a classmate of Ella's?

25 A Yes.

1 Q Were they friends?

2 A Yes.

3 Q And did they socialize during their years at
4 Morristown Beard?

5 A Yes.

6 Q How would you describe their friendship?

7 A Just a normal friendship. I mean, they were
8 friends. Normal.

9 Q Did they go to each other's houses?

10 A Yes.

11 Q Did they have sleepovers?

12 A I don't remember if they had sleepovers
13 freshman year, but they might have. Yeah, they could
14 have.

15 Q Did they go on vacation together?

16 A Ella did go on vacation, but I don't know if
17 it was starting freshman year. I don't remember when
18 she first went with the family to Nantucket.

19 Q Okay. And you indicated that you first met
20 -- if I refer to him as Brad, is that okay?

21 A Yes.

22 Q All right. You first met Brad her freshman
23 year, correct?

24 A Yes.

25 Q And I believe you said you didn't have any

1 relationship with him or contact with him at that
2 time?

3 A No, I didn't. No, I did not.

4 Q Did you know his wife?

5 A Not until freshman year.

6 Q Okay. I guess maybe I'm confusing you. Did
7 you meet his -- did you also meet his wife, Kim, at
8 the same time?

9 A Yes. Not the same day. Not at the field
10 hockey game, but during that period of time when they
11 were playing a sport together, and maybe becoming
12 friends, I met her then, freshman year.

13 Q Okay. So after meeting them for the first
14 time, what was the level of contact you had with the
15 Mells?

16 MS. SAMMONS: Are we still talking
17 freshman year, Ross?

18 MR. PEARLSON: Yes.

19 THE WITNESS: Very limited. I mean, it
20 would just be, like, talk about sports, you know, if
21 there was some carpool, or something, or they needed
22 to meet up for field hockey. It was very, very
23 limited and nothing with Brad.

24 BY MR. PEARLSON:

25 Q Okay. You didn't socialize with the Mells?

1 A No.

2 Q At that point. Did the nature of your
3 relationship with the Mells change at any point during
4 Ella's attendance at Morristown Beard?

5 A Well, I guess it changed after what happened
6 -- the boating accident that BB had.

7 Q Okay. And prior -- when was the boating
8 accident?

9 A I don't remember the year. Maybe she was,
10 maybe, a freshman in high school. I can't remember.

11 Q When you say "she," you mean BB was a
12 freshman in high school at the time?

13 A Yeah, or maybe a sophomore. Sophomore
14 maybe. I don't remember.

15 Q If I told you it was 2015, does that refresh
16 your recollection?

17 A That could be right, maybe. Yeah, maybe.

18 Q Okay. As of 2015, prior to the boating
19 accident, did your relationship with the Mells change
20 beyond -- was it anything beyond what you just
21 described in your testimony?

22 A No.

23 Q And what about the relationship between Ella
24 and Eliza, had it changed?

25 A Not really. I mean, Eliza went away, but

1 they still remained friends.

2 Q And when you said she went away, where did
3 she go away to?

4 A To boarding school.

5 Q And where was that?

6 A I don't remember the name.

7 Q Okay. And in terms of the relationship
8 between Ella and Eliza, did that -- did Ella spend any
9 time at the Mells house as a result of that
10 friendship?

11 MS. SAMMONS: Are we still talking
12 freshman year, Ross?

13 MR. PEARLSON: No, no, up until 2015.
14 We're talking pre-boating accident.

15 THE WITNESS: When Eliza would come
16 home, yes, she would see her sometimes, yeah.

17 BY MR. PEARLSON:

18 Q Would she sleepover at the house?

19 A I don't remember specifically, but she might
20 have.

21 Q Okay. What about the other way around, did
22 Eliza spend time at your house?

23 A She definitely went -- Ella definitely went
24 there more. I don't remember if Eliza came to our
25 house. She might have. I don't remember.

1 Q Okay. And in addition to the relationship
2 between Ella and Eliza, again, I'm speaking about the
3 period before the boating accident, did Ella perform
4 any services for the Mells?

5 A Yes. She babysat William. And she would --
6 when they were all up in Nantucket, she would do --
7 get the mail, water the plants, and do stuff -- like,
8 house stuff.

9 Q Okay. And this is all pre-2000 --
10 pre-boating accident?

11 A Yes.

12 Q And how often would she babysit for the
13 Mells?

14 A I don't really remember how often.

15 Q Okay. Other than the things you described,
16 prior to the boating accident, were you aware of any
17 other contact that Ella would have had with the Mells
18 as a family?

19 A No.

20 Q How about in terms of any, particularly
21 Brad, any contact she would have had with Brad Mell?

22 A No.

23 Q And you spoke of a boating accident. Where
24 was -- this was a boating accident involving BB?

25 A Yes.

1 Q Okay. Just to go back for a second. After
2 Ella had graduated, did they both end up at the same
3 college?

4 A Yes.

5 Q What college was that?

6 A Colby.

7 Q And did the fact that Eliza was going to
8 Colby, did that impact Ella in any way in her choice
9 of college?

10 A No.

11 Q And the boating accident, where was BB when
12 that boating accident happened?

13 A Martha's Vineyard.

14 MR. PEARLSON: Okay. Can we pull up
15 the second amended complaint? We're going to mark as
16 Laura Cannon 1, the second amended complaint and jury
17 demand in this case.

18 (Laura Cannon Exhibit 1 was marked for
19 identification.)

20 MS. SAMMONS: Are we doing screenshare
21 or --

22 MR. PEARLSON: I can just ask her.

23 BY MR. PEARLSON:

24 Q Okay. Do you recall whether that accident
25 in Martha's Vineyard occurred in summer of 2015?

1 A I think. I don't know for sure the date.

2 Q Okay. And who was BB with at the time of
3 the boating accident?

4 A Close family that had very good -- their
5 daughter was a very good friend of BB's.

6 Q Okay. What was the name of the family?

7 A Smith.

8 Q And you were not with her?

9 A No. She was on vacation with that family.

10 Q Okay. And how old was she at the time?

11 A Yeah, I think freshman or sophomore year. I
12 don't remember which year it was.

13 Q And how old was Ella at the time?

14 A Well, she's three years, I believe, older
15 than BB, right? Three or four. So three or four
16 years older than BB was, but I don't remember.

17 Q And how did you hear about the accident?

18 A I believe the mom called me. Yeah, Mrs.
19 Smith called me.

20 Q Okay. And what did she tell you about the
21 accident?

22 A That BB was very badly hurt, she was in
23 hospital. That she might have to be air backed over
24 to a bigger hospital, somewhere. And that she was
25 hoping I could fly up at some point, get up there

1 somehow.

2 Q Okay. What did you do after learning about
3 this accident through the conversation you just
4 described?

5 A I called, probably, Tony. I don't remember
6 exactly. I called Tony. I was at work, so the person
7 I was working with started trying to make a flight
8 reservation for me. And then I called, probably, Ella
9 to tell them I had to go, I had to leave, this
10 happened to BB.

11 Q And how did you get up to Martha's Vineyard
12 to see BB?

13 A Well, it turned out that Brad was -- offered
14 to fly me up to get her.

15 Q Okay. And how did it come about that you
16 ended up flying -- when you say Brad offered to fly
17 you up, did he have access to a private plane?

18 A Yes. His private plane, yep. Yes.

19 Q Okay. When you say "his private plane," did
20 you understand that he owned the plane?

21 A I was told, yeah. I don't even know if I
22 knew he owned a plane. Maybe I did, yes. I
23 understand he owned a plane.

24 Q What did you know about Brad's finances or
25 wealth prior to this boating accident?

1 A Nothing really. Nothing.

2 Q Had you ever been to the Mells' house prior
3 to the accident?

4 A No.

5 Q Now, describe for us how it came to be that
6 you ended up flying on Brad Mell's private plane to
7 Martha's Vineyard.

8 A So I was -- I called my family. And I was
9 trying to get ready, like leave work, and get ready to
10 go up there. And I guess Ella was driving Mrs. Mell's
11 car for service -- to get serviced. That was one of
12 her jobs. So she called Brad and said, "I can't do
13 this. I have to go. My sister's been really badly
14 hurt." And he offered, I guess, you know, "I'll fly
15 your mom up there to get her."

16 Q Okay. Did you speak to Brad directly to
17 make arrangements to fly on the plane?

18 A I don't remember if I did. I know I must
19 have at some point spoken to him, but I don't remember
20 when.

21 Q Okay. And did you end up flying on Brad
22 Mell's private plane to Martha's Vineyard?

23 A Yes.

24 Q Who went with you?

25 A Me and Ella.

1 Q Okay. Did you pay for that?

2 A I offered to pay, but he wouldn't accept it.

3 Q Okay. And at that time was your
4 relationship with the Mells what you had described
5 previously --

6 A Yes.

7 Q -- you really hadn't had much contact?

8 A Yes.

9 Q Okay. And how about in terms of once you
10 got up there, how did you and Ella get back to New
11 Jersey?

12 A Yes. He flew us back.

13 Q Okay. And when you say he flew you back, he
14 didn't fly with you, correct?

15 A No, he had two pilots that flew.

16 Q Okay. And did you pay for the expenses
17 related to the flight back?

18 A I offered to pay for all of that.

19 Q Okay. Was that the first time you had ever
20 received anything, any money, compensation, anything
21 of value from the Mells?

22 A Yes.

23 Q Okay. This is the summer of 2015, the
24 boating accident?

25 A Yes, if that's when it was. Yes.

1 Q Do you know how Brad -- let me ask you this:
2 Did Brad contact you about the flight to offer it or
3 did you contact him?

4 MS. SAMMONS: Objection --

5 THE WITNESS: I don't remember. I
6 don't think I would have contacted him. He must have
7 contacted me.

8 BY MR. PEARLSON:

9 Q Did he tell you how he learned about the
10 accident?

11 A I don't remember. I don't remember if Ella
12 told him. I don't remember. I don't remember that.

13 Q Following the accident, Brad had agreed to
14 fly you to and from Martha's Vineyard, you and Ella,
15 did your relationship change with the Mells following
16 the boating accident in 2015?

17 A Well, a little bit. I had wanted to pay,
18 obviously, and he wouldn't accept payment. So I did
19 something else. I offered to do a really nice lobster
20 dinner on the beach for both of our families because
21 he wouldn't take money. So I organized a really nice
22 dinner on the beach for our families as a thank you.

23 Q When did you do that?

24 A Three weeks, four weeks after the accident.
25 Late July.

1 Q Okay. The 4th of July?

2 A Late July. The end of July, I'd say.

3 Q And it was still in 2015?

4 A Yeah, the same summer, yeah.

5 Q Okay. And where did the lobster dinner take
6 place?

7 A I don't remember the name of the place.
8 It's a very well-known lobster place on Nantucket.

9 Q Okay. And how did you get to Nantucket?

10 A That summer for my vacation? I drove.

11 Q Okay. And did you realize that the Mells
12 had a house in Nantucket?

13 A I might have known at that time. I don't --
14 yeah, maybe, yeah because Ella had gone up there with
15 them as a family at some point.

16 Q Okay. So just to get the timeline straight,
17 Ella had gone on vacation at the Mells house in
18 Nantucket prior to the summer of 2015?

19 A I believe she had at some point. I don't
20 remember the date, or how often, or any of that, but
21 yeah. She had gone up.

22 Q Okay. And your testimony is, your best
23 recollection is that that took place a few weeks after
24 the accident itself?

25 A It definitely took place a few weeks after

1 the accident, yeah. I remember that.

2 Q Okay. It was a way of showing the Mells
3 your appreciation for the flight?

4 A Yes because he wouldn't accept money.

5 Q Okay. Now, did you know -- in terms of the
6 relationship between Brad and Ella, again, in 2015
7 after the accident, were you aware of any contact
8 between Brad and Ella directly?

9 A Probably for work, to babysit, to do the
10 housework.

11 Q Okay. You didn't suspect they were having
12 any kind of relationship, right?

13 A No.

14 Q Were you ever aware that Brad was giving
15 Ella any money --

16 A For the work?

17 Q -- in high school?

18 MS. SAMMONS: Objection. What
19 timeframe are we talking? The same timeframe, Ross?

20 MR. PEARLSON: Yes, post-2015.

21 BY MR. PEARLSON:

22 Q Let me rephrase the question. I believe you
23 testified that she was -- that Ella was working for
24 the Mells as both taking care of the house and
25 babysitting, right?

1 A Yes.

2 Q Other than paying her for that, were you
3 aware of Brad Mell giving your daughter any money?

4 A No.

5 Q Were you aware that he gave her a credit
6 card?

7 MR. GREIFINGER: What time are we
8 talking? Are we still in 2015?

9 MR. PEARLSON: Post-2015 accident,
10 yeah.

11 MR. GREIFINGER: Post, that's --

12 THE WITNESS: Pre --

13 MR. GREIFINGER: Wait a minute, hold
14 it. We're talking about the last eight years? Is
15 that how broad the question is?

16 BY MR. PEARLSON:

17 Q Let me rephrase it. How about while she was
18 in high school, were you ever aware that Brad gave
19 Ella a credit card for her use?

20 A I don't think I discovered that when she was
21 in high school, no.

22 Q Okay. When did you discover it?

23 A I don't remember when, but I'm pretty sure
24 it was not during high school.

25 Q Okay.

1 A I don't remember when.

2 Q Were you ever aware of Ella making expensive
3 purchases of things you didn't understand where she
4 got the money from?

5 A Eventually, yeah.

6 MS. SAMMONS: Objection. Are we
7 talking the same timeframe, Ross, please?

8 MR. PEARLSON: Yes, the same timeframe.

9 THE WITNESS: So for all --

10 MR. GREIFINGER: Excuse me. I don't
11 know that you've clarified the timeframe. I don't
12 care what time you're asking about, but there's been a
13 lot discovered since 2015. So can we, please, just
14 narrow that?

15 BY MR. PEARLSON:

16 Q I was trying to limit it, Ms. Cannon, to the
17 years she was in high school. So --

18 A So no, not in high school, no.

19 Q And you weren't -- she never made any
20 purchases for you that you're aware of that were --

21 A In high school? No.

22 Q Okay. And --

23 A I don't -- yeah, I don't think, no.

24 Q Were you aware of Ella buying herself any
25 expensive gifts, such as jewelry or handbags in high

1 school?

2 A No.

3 Q And she never purchased any expensive
4 handbags for you?

5 A In high school? No, no. I don't think so.

6 Q It sounds like it suggests from your
7 testimony that that changed at some point, that you
8 realized she was making -- she was buying expensive
9 stuff. When did that change? When did you recognize
10 that change?

11 A I don't remember when.

12 Q When did you learn that Brad Mell had given
13 her a credit card to make purchases --

14 A I don't remember when I learned that.

15 Q How did you learn?

16 A I don't remember that either. I don't
17 remember how I learned.

18 Q Were you aware that -- did you ever see Ella
19 with a Cartier watch?

20 A Not -- not until much later, yeah.

21 Q Okay. When you say "much later," when did
22 you learn that Ella had a Cartier watch?

23 A Not in high school. I don't remember when I
24 first saw that she had a Cartier watch. I don't
25 remember.

1 Q When you noticed, did you ask her when she
2 got it -- where she got it?

3 A I might have. I don't remember. I might
4 have.

5 Q Did she tell you that was from Brad Mell?

6 A Eventually she did.

7 Q Okay. When you say eventually, can you
8 approximate?

9 A I don't remember when. I don't remember
10 when.

11 Q Okay. Do you believe it was after she was
12 in college?

13 MR. GREIFINGER: Objection. Are you
14 asking what she currently believes, having been
15 through these years --

16 MR. PEARLSON: I'm asking when she
17 discovered -- she mentioned that she noticed that her
18 daughter had a Cartier watch --

19 MR. GREIFINGER: So you're asking for
20 her mental state on when she --

21 MR. PEARLSON: I'm asking for her to
22 try to approximate when she saw this Cartier watch,
23 whether it was in high school or when she was at
24 Colby.

25 MR. GREIFINGER: Well, that she's

1 answered. It's the belief question that I'm objecting
2 to. If it's framed more narrowly, there would be no
3 objection.

4 BY MR. PEARLSON:

5 Q Ms. Cannon, when did you notice your
6 daughter was wearing a Cartier watch?

7 A I don't remember when.

8 Q Did you purchase a Cartier watch for her?

9 A No.

10 Q Did you ask her where she got it from?

11 A I might have --

12 MR. GREIFINGER: Objection, asked and
13 answered.

14 BY MR. PEARLSON:

15 Q Go ahead. You can answer, Ms. Cannon.

16 A I might have. I don't remember.

17 Q Did you have a discussion with her about it?

18 A Probably.

19 Q Okay. Do you recall what that discussion
20 was?

21 A No.

22 Q And at some point you learned your daughter,
23 Ella, was having a relationship with Brad Mell, right?

24 A Yes.

25 Q All right. Can you describe for us how you

1 came to learn that your daughter was involved in a
2 relationship -- your daughter, Ella, was involved in a
3 relationship with Brad Mell?

4 A My mom called me, and told me that she --
5 she had a camera system set up in her house. And she
6 called me and said that there was a video of Ella at
7 her house with somebody that was older, an older man.

8 Q Okay. And what did she say to you about the
9 video that led you to have any kind of concern?

10 A Well, just that she was there with an older
11 man. That was concerning enough.

12 Q Did you have any idea, when she told you,
13 who that older man might be?

14 A No.

15 Q Did you suspect it might be Brad Mell?

16 A No.

17 MS. SAMMONS: Objection.

18 BY MR. PEARLSON:

19 Q What did you do after you had this
20 conversation with your mother?

21 A I called Ella.

22 Q Okay. And what was the nature of your
23 discussion with Ella?

24 A I told her what my mother said, what she had
25 found, or seen, or whatever. Actually, I can't

1 remember if I called her or I saw her in person. So I
2 don't know, but I contacted Ella some way, and we
3 talked about it. And I said, "What's going on?" And
4 she said, "Well, yeah, we had gotten close, like as a
5 friendship. And it's just changed a little bit. It's
6 just become something a little bit more."

7 Q Okay. Did she say anything more than that
8 when she said "a little bit more"? What did she tell
9 you about the nature of her relationship with Brad
10 Mell?

11 A I'm sorry, did you say what or when did she
12 tell me about the nature?

13 Q What did she tell you about at that time, in
14 that conversation, what did she say about her
15 relationship with Brad Mell?

16 A Well, I do not remember that conversation,
17 like, word for word, but I definitely understood that
18 they had at least kissed.

19 Q Did you ask her?

20 A I didn't ask her, like, all, "What have you
21 done?" No. She was very upset. And I understand it
22 was already an inappropriate relationship. I wasn't
23 going right in that conversation asking her, "What
24 happened? What did you do?" I wasn't -- I understood
25 that it was already not something that was good.

1 Q Did you ever watch the video --

2 A No.

3 Q -- that your mother had seen?

4 A I didn't let you finish. But no, I didn't.

5 MR. PEARLSON: Okay. Why don't we take
6 just a quick five-minute break. We've been going for
7 an hour and a half. And then we'll come back on. If
8 that's okay.

9 THE WITNESS: That's fine.

10 THE REPORTER: Okay, everybody. Please
11 standby. I'm going to take us off the record at 11:27
12 a.m.

13 (Off the record.)

14 THE REPORTER: Okay. We're back on the
15 record at 11:36 a.m. Counsel, please go ahead.

16 MR. PEARLSON: Thank you.

17 BY MR. PEARLSON:

18 Q Ms. Cannon, before we broke, we were talking
19 about your discovery of a relationship between Brad
20 Mell and your daughter, Ella. When did this take
21 place? When did you discover, you know, through the
22 video that your daughter was engaged in a relationship
23 with Brad Mell?

24 A I think it was February, early February,
25 maybe.

1 Q Of what year?

2 A It would have been her junior year in high
3 school.

4 Q Okay. And how old was she at that time,
5 approximately, as of February 2016?

6 A Seventeen.

7 Q And at that time, was Brad Mell married?

8 A Yes.

9 Q Okay. And he was married to Kim still?

10 A Yes.

11 MR. MCENROE: I don't want to
12 interject, but just in terms of timing, you said
13 February of her junior year. Was that 2016?

14 THE WITNESS: I'm really bad with
15 dates, but I think it was 2016.

16 BY MR. PEARLSON:

17 Q Ms. Cannon, if the boating accident was in
18 the summer of 2015, was that --

19 A Yes, then it would -- because January would
20 have turned into -- yes, so that would be 2016, yeah.

21 Q Okay. And --

22 MR. MCENROE: Her senior year in high
23 school?

24 THE WITNESS: I'm sorry, say that
25 again?

1 MR. MCENROE: I believe it's been
2 established through your testimony and others that she
3 graduated high school in 2016, your daughter, Ella,
4 correct?

5 THE WITNESS: Yes, you're right. Yeah,
6 you're right. Sorry, I'm not good with dates.

7 BY MR. PEARLSON:

8 Q Okay, Ms. Cannon. Just to make a clear
9 record, your recollection having now had it refreshed
10 is that your -- this discovery by you took place in
11 February of 2016, when your daughter, Ella, was 17 and
12 in her senior year of high school. Are all those
13 facts correct?

14 A She was definitely 17. I think so. I think
15 so. I'm sorry, I don't remember. I know she was 17
16 when I found out.

17 Q Okay. And upon discovering her relationship
18 with Brad Mell, what did you do to find out the
19 details of the nature of their relationship?

20 MS. SAMMONS: Objection. Other than
21 what she's testified already?

22 MR. PEARLSON: Well, we really didn't
23 go into the details.

24 BY MR. PEARLSON:

25 Q You spoke to her that day, correct, that you

1 learned about the video, right?

2 A Yes, I spoke to her that day, yes.

3 Q What details did she tell you about the
4 nature of her relationship with Brad Mell in that
5 initial conversation?

6 A I don't remember word for word what she told
7 me in that initial conversation.

8 Q Okay. So my question is: What did you do to
9 learn the details of the relationship between her and
10 Brad Mell?

11 A Well, I can tell you that I didn't learn a
12 lot of the details for a very long time. But through
13 conversations throughout the days and weeks that
14 followed, we would have been speaking about it, I'm
15 sure, to some degree.

16 Q So were you relying solely on what Ella was
17 telling you about the relationship to learn what had
18 happened between her and Brad Mell?

19 A Yes. I was, yes.

20 Q Did you ever confront Brad Mell about it at
21 that time in February of 2016?

22 A Yes. He asked me to meet him and talk to
23 him.

24 Q Okay. He asked you to meet him and talk to
25 him. How long after the discovery of the relationship

1 did that take place?

2 A Yes. I can't remember if it was the day of
3 or the next day. It was very shortly after I found
4 out, but I don't remember which day.

5 Q Did you go meet him?

6 A Yes.

7 Q And where did you meet him?

8 A In a private room at the Essex Hunt Club.

9 Q Okay. And were you a member of the Essex
10 Hunt Club?

11 A At that time I might have been at that time.
12 Yeah, I can't remember when we became full members,
13 but maybe at that time. I don't remember.

14 Q And were they members of the Essex Hunt Club
15 too, the Mells?

16 A Yes.

17 Q Did they have anything to do with you
18 getting into the Essex Hunt Club? Did they sponsor
19 you?

20 A They partially sponsored us. You need a
21 bunch of people to sponsor you, so they were one of a
22 bunch of people that sponsored us.

23 Q Okay. So describe for me your meeting with
24 Brad Mell at the Essex Hunt Club the day after you
25 discovered that he was in a relationship with Ella.

1 A So we just --

2 MS. SAMMONS: Objection. I'm sorry.

3 The question as you asked it was that it happened the
4 day after. I think her testimony was that it happened
5 within days. So I just want to make sure we're not --
6 we're correct in her testimony.

7 MR. GREIFINGER: She said the day of or
8 the day after.

9 MR. PEARLSON: Yeah, that's what I
10 thought she'd said.

11 BY MR. PEARLSON:

12 Q Regardless, Ms. Cannon, why don't you just
13 describe for us the nature of your conversation with
14 Mr. Mell at the Essex Hunt Club.

15 A He just was apologizing, and crying, and
16 saying sort of the similar thing that they had had a
17 friendship that changed into something more, how sorry
18 he was. I don't remember all of it.

19 Q Did you ask him for the details of how much
20 more, like how physical their relationship had been?

21 A No. I really didn't want details actually
22 from him.

23 Q Did you ask him where this relationship had
24 taken place?

25 A No --

1 MR. GREIFINGER: Objection.

2 BY MR. PEARLSON:

3 Q Did you ever ask him, you know, whether he'd
4 been to a hotel with her?

5 A No. I never ever would have thought he
6 would have taken her to a hotel.

7 Q Okay. And you didn't ask Ella either,
8 right?

9 A No. Not at that time, no.

10 Q At that time did you wonder, you know,
11 considering that you were -- that you made a point of
12 knowing where she was, how this could have happened?

13 A I mean, I'm sure in my brain I was saying,
14 "How did I not realize this?" Maybe, yeah, but I
15 don't -- I never thought to ask her, "Did you go to a
16 hotel?" No.

17 Q Okay. Following your -- how long a
18 conversation did you have with Brad Mell?

19 A I don't really remember. Maybe a half hour.
20 I don't remember how long it went.

21 Q Did you tell him to stay away from your
22 daughter in that meeting?

23 A We definitely agreed that their relationship
24 would be over, that they would stop seeing each other.

25 Q Okay. Brad Mell agreed to stop his

1 relationship with her?

2 A Yes, he did.

3 Q Did you tell him that he couldn't have any
4 more contact with her?

5 A That was a given in our conversation.

6 Q Okay. Did you tell Ella that she couldn't
7 see Brad Mell anymore?

8 A Yes, yeah. It was agreed that their
9 relationship was going to stop. They were going to
10 stop seeing each other.

11 Q Okay. So as of February 2016, whatever the
12 relationship was between Brad Mell and Ella, you
13 believed it was over at that time?

14 A Yes.

15 Q Okay. Did you do anything to monitor
16 anything differently following February 2016, to
17 monitor Ella's activities?

18 A Yes.

19 Q What did you do?

20 A To monitor? I started tracking her all the
21 time.

22 Q Okay. Was she still allowed to go to the
23 Mells' house to babysit?

24 A No.

25 Q Okay. Was she still allowed to socialize

1 with Eliza?

2 A I think she was, yeah. I don't know if they
3 did though. I mean, I don't remember when the next
4 time they would have seen each other was. But we
5 didn't stop their friendship, no, because they were
6 going to the same college. It would have been --
7 actually at that time I don't know if we knew they
8 were going to the same college actually. But they
9 were friends and we didn't stop their friendship.

10 Q Did you do anything to review Ella's phone
11 to see who she was texting and calling?

12 A No.

13 Q What, if anything, did you do to restrict
14 Ella's activities following that discovery?

15 A Following that discovery, yeah, I definitely
16 restricted her. She had to come right back from
17 school. I didn't let her use her car as much. I
18 needed her to be at the house more. I needed her to
19 be here more. I tracked her. Yeah, that's all.

20 Q Okay. So is it fair to say that as of this
21 time period, your intention was to cut her off from
22 Brad Mell?

23 A Yes.

24 Q Did you tell your husband about the
25 relationship?

1 A Not for a few days, no.

2 Q For a few days or a few weeks?

3 A No, it was not a few weeks. It was a few
4 days.

5 Q Okay. And why did you delay telling him?

6 A Definitely, like, processing and wanting to
7 just help Ella. She was really upset. It's obviously
8 traumatic to have this happen with her grandmother
9 finding out, and the whole thing. And I just wanted
10 to give her time to -- not be all right, but somewhat
11 process what happened. And yeah, just waited. I just
12 wanted to help her first.

13 Q Did you tell him not to confront Brad?

14 A I didn't want him to go to jail, yeah.

15 Q You didn't want who to go to jail?

16 A My husband to go to jail for beating him up.

17 Q He's a violent man?

18 A No, but --

19 MR. GREIFINGER: Objection. She never
20 said that. Please.

21 MS. SAMMONS: Objection.

22 BY MR. PEARLSON:

23 Q Is he a violent man?

24 A No. He's never been a fight as long as
25 we've been married or anything violent at all, no.

1 Q Did you go to the police when you found out
2 about the relationship between Brad and Ella?

3 A No.

4 Q At this point, in February of 2016, as we've
5 been discussing, did you know they were sleeping
6 together?

7 A I don't -- I don't think I knew. I don't
8 know if we discussed those types of details at that
9 time. I don't remember when we started to have
10 conversations more in detail about that. I don't
11 remember.

12 Q Did you ask her in February of 2016, whether
13 they were sleeping together or how far their physical
14 relationship had gone?

15 A I don't remember.

16 MR. GREIFINGER: Objection, form.

17 You may answer.

18 THE WITNESS: I don't remember if I
19 asked her then. I don't remember when I asked her or
20 if --

21 BY MR. PEARLSON:

22 Q When did you learn about the physical nature
23 of their relationship? When did Ella tell you that
24 she had had sexual relation with a 50-year-old married
25 man?

1 MR. GREIFINGER: Objection, asked and
2 answered. She can answer.

3 THE WITNESS: I don't remember when she
4 told me. And he wasn't 50 at the time, I don't think.

5 BY MR. PEARLSON:

6 Q Okay. He was substantially older, correct?

7 A Yes, he was substantially older.

8 Q And, in fact, he had a daughter the same age
9 as your daughter?

10 A Yes, he did.

11 Q Did you ever tell his wife?

12 A No. I didn't think it was my place to tell
13 his wife.

14 Q Okay. And it's your testimony that you
15 never told him to keep away from your family generally
16 in any way at that point?

17 MS. SAMMONS: I'm going to object. I
18 don't think that's her testimony.

19 THE WITNESS: I'm sorry --

20 MR. GREIFINGER: Join in that.

21 BY MR. PEARLSON:

22 Q Ms. Cannon, let me rephrase the question.
23 Did you ever tell Brad Mell to stay away from your
24 family?

25 A No. I just --

1 MR. GREIFINGER: Okay. Let me just --
2 objection to form.

3 You may answer.

4 THE WITNESS: No. I didn't ever tell
5 him to stay away -- I don't think I ever told him to
6 stay away from my family.

7 BY MR. PEARLSON:

8 Q Okay. After the discovery of this
9 relationship -- well, strike that. Let me ask you
10 first: Didn't you think as a parent you would want to
11 know the full nature of the relationship between your
12 daughter and Mr. Mell?

13 MR. GREIFINGER: Objection.

14 Go ahead.

15 THE WITNESS: When something like this
16 happens to your daughter, you don't just dive in and
17 ask all personal questions. You are worried about
18 their mental health. You're worried about your
19 family. You're worried about many other things. You
20 don't just dive in and say, "Did you sleep with him?
21 How many times did you sleep with him? Did you sleep
22 with him?" That's not what you do or that's not what
23 I did.

24 BY MR. PEARLSON:

25 Q Okay. So when did you get into those

1 details with Ella --

2 A I don't --

3 MR. GREIFINGER: Objection.

4 THE WITNESS: I don't remember.

5 BY MR. PEARLSON:

6 Q Well, did you ever get into those details
7 with Ella?

8 A Yes, eventually I definitely understood that
9 that had happened.

10 Q Can you approximate when you understood the
11 details of the relationship? Well, first of all --

12 MR. GREIFINGER: Objection to that.

13 BY MR. PEARLSON:

14 Q Okay. What did she tell you about the
15 details of her relationship, her physical
16 relationship, with Brad Mell?

17 MS. SAMMONS: Objection, asked and
18 answered.

19 MR. PEARLSON: I don't believe she
20 answered it.

21 BY MR. PEARLSON:

22 Q Go ahead, Ms. Cannon.

23 A You're asking me what did Ella tell me about
24 her physical relationship with Brad Mell?

25 A Yes.

1 Q You said --

2 A Like ever? Like when?

3 Q Yeah, at any time. You said she didn't tell
4 you about -- you didn't go into that with her in
5 February 2016. At some point, did you go into that
6 with her?

7 A Yes, eventually --

8 MR. GREIFINGER: Objection -- wait a
9 minute -- objection. You're using terms like "going
10 into that." It's totally unclear what you're asking.
11 BY MR. PEARLSON:

12 Q Ms. Cannon, do you understand my question?
13 My question is: You said that in your initial
14 conversation with her, you didn't get into the details
15 of the nature of her physical relationship with Brad
16 Mell, correct?

17 A Right.

18 Q At some point you did, correct?

19 A Yes. I know that at some point I understand
20 that they had -- yes.

21 Q Okay. So my question for you is: First of
22 all, when did she describe to you in greater detail
23 the nature of her physical relationship with Brad
24 Mell?

25 A I don't remember when she did that.

1 Q Was it within months of the discovery of the
2 relationship?

3 A I almost feel like we didn't have that
4 conversation. I don't know if it was necessary. I
5 don't remember -- I don't remember that.

6 Q So Ms. Cannon, just so I understand, your
7 daughter had a -- had some kind of inappropriate
8 relationship with an older, married man -- much older,
9 married man, and you didn't think it was appropriate
10 to probe into the details of that relationship?

11 MR. GREIFINGER: What details? Again,
12 it's so vague --

13 MR. PEARLSON: Richard, no speaking
14 objections --

15 MR. GREIFINGER: Well, objection.

16 BY MR. PEARLSON:

17 Q The physical nature of the relationship.
18 You did not think it was appropriate to probe into the
19 physical aspect of the relationship. Is that correct?

20 MR. GREIFINGER: Objection.

21 THE WITNESS: Probe into it. I didn't
22 feel that it was necessary to probe into it. I
23 understand at some point what their relationship was
24 just by things that were said. I just didn't ever go
25 and ask her for every detail, but I did understand

1 what had happened. But I didn't completely ask her
2 for every single detail of where they were, what
3 happened, how many times. I didn't do that. At least
4 not then. Not until later at some point when we had
5 more discussion probably.

6 BY MR. PEARLSON:

7 Q Is it fair to say, Ms. Cannon, in the months
8 after discovering this, you did not ask for the
9 details of their physical relationship. Is that fair?

10 MR. GREIFINGER: Objection.

11 THE WITNESS: Very specific details, I
12 did not ask for. Overall general feeling, idea, I had
13 from her, yeah.

14 BY MR. PEARLSON:

15 Q Okay. And is it fair to say in the months
16 following your discovery of their inappropriate
17 relationship in February, you didn't make any
18 inquiries as to where and how it happened? Is that
19 true too?

20 A No.

21 MR. GREIFINGER: Objection.

22 MS. SAMMONS: Objection. It's
23 compound. Let's keep it to where, and maybe how. But
24 you're combining them.

25 MR. GREIFINGER: And it presupposes how

1 it happened as a single event. It's a crazy question.

2 MR. PEARLSON: It's not a crazy
3 question.

4 BY MR. PEARLSON:

5 Q Ms. Cannon, did you find out how this
6 relationship between your daughter, Ella, and Mr. Mell
7 developed?

8 A You mean, like, how they crossed the line
9 from friendship to more?

10 Q Yeah.

11 A They pretty much said that their feelings
12 grew, and they started to like each other more than
13 friends. Something like that.

14 Q Did Ella tell you that she fell in love with
15 Brad Mell?

16 A She did say she was in love, yeah, with him,
17 I think. Yeah.

18 Q Did you believe her?

19 A Yeah, eventually I did believe her.

20 Q Eventually? You didn't believe her at
21 first?

22 A I don't remember if I believed her right off
23 the bat or not. I mean, she definitely felt strongly
24 about him for sure.

25 Q Did you feel that a 17 year old girl really

1 could be in love with a man that much older?

2 MR. GREIFINGER: Objection. You're
3 asking a layperson to give an opinion on this, on your
4 hypothetical?

5 MR. PEARLSON: I want her opinion. Did
6 she really believe that her 17 year old daughter could
7 be in love with a married man who was that much older?

8 MR. GREIFINGER: Objection.

9 MS. SAMMONS: Objection.

10 BY MR. PEARLSON:

11 Q Go ahead, Ms. Cannon.

12 A I believed the emotion that Ella was showing
13 me at the time, yeah. I believed what she was showing
14 me.

15 Q So you believed that she was in love with
16 him?

17 MS. SAMMONS: Objection.

18 BY MR. PEARLSON:

19 Q I don't understand the objection, but you
20 can answer, Ms. Cannon.

21 MS. SAMMONS: She's asked and answered
22 it three times.

23 BY MR. PEARLSON:

24 Q Ms. Cannon, did you believe in February of
25 2016, that your daughter was in love with Brad Mell?

1 A I don't remember when. At some point I
2 definitely believed she was in love with him.

3 Q Did Brad Mell tell you anything about his
4 feelings for your daughter in the meeting at the Essex
5 Hunt Club?

6 A I mean, he did tell me things about his
7 feelings, for sure, but I don't remember what he said.

8 Q Okay. But in any event, your understanding
9 was the agreement for both of them was that they were
10 going to stay away from each other, correct?

11 A Yeah, yes.

12 Q When was the next time you saw Brad Mell
13 after that February 2016 discovery?

14 A I don't remember when I saw him next.

15 Q Okay. Was it your understanding that they
16 had stopped seeing each other as of February 2016?

17 A Yes.

18 Q Okay. And that was something you wanted at
19 the time?

20 A Yes.

21 Q Okay. Now, was there a -- do you recall
22 that there was a pre-prom party for Ella's prom?

23 A Yes.

24 Q And where was that?

25 A That was at a friend of Ella's house.

1 Q And what friend?

2 A Her name was Hannah.

3 Q Okay. And was this for the Morristown Beard
4 prom?

5 A Yes.

6 Q Okay. And who, from your family, attended
7 this pre-prom party?

8 A I don't remember exactly, but it might have
9 been everybody or maybe everybody but Grace, maybe. I
10 don't remember.

11 Q And do you recall whether this took place
12 around May of 2016?

13 A I mean, I'm guessing because that's when
14 prom is. I don't remember.

15 Q Do you have any recollection of it taking
16 place in the spring of 2016?

17 A Yes.

18 Q Okay. And this is after you found out about
19 Brad's relationship with Ella, correct?

20 A Yes.

21 Q Okay. And was Brad at the party?

22 A Yes.

23 Q Was this the first time you had seen him
24 since the discovery of the February -- well, strike
25 that. Was this the first time you had seen him since

1 you discovered his relationship with your daughter,
2 Ella?

3 A It might have been. Yeah. It might have
4 been. I don't remember when the first time was.

5 Q Between the February discovery of the
6 relationship and this pre-prom party, had you spoken
7 to Brad Mell at all?

8 MR. GREIFINGER: Objection. I think
9 she's answered that she didn't remember.

10 BY MR. PEARLSON:

11 Q Is that correct? You don't remember when
12 you spoke to him?

13 A I don't remember. Actually I don't
14 remember, no.

15 Q Okay. And why was he there? Why was he at
16 the pre-prom party?

17 A Because Eliza went to the prom.

18 Q Okay. And was his family there?

19 A He, and his wife, and Eliza were there, I'm
20 pretty sure. I think.

21 Q Did you talk to Brad at the party?

22 A I don't think I spoke to Brad, or maybe I
23 said a very quick hello. I mean, the girls were
24 there, so I didn't want to be completely rude because
25 Eliza was there. I don't think I spoke at length with

1 him.

2 Q At this point, did BB and Grace know about
3 Ella's relationship with Brad?

4 A I don't remember if they knew at that time.
5 I don't remember when they found out honestly.

6 Q -- find out about Ella's relationship with
7 Brad?

8 A I think it was that Grace or BB got -- maybe
9 found texts or something, or saw something on a phone,
10 an old phone or something.

11 Q And you have no recollection of when that
12 was?

13 A I don't.

14 Q And you didn't tell them about it, right?

15 A No, no.

16 Q Anthony didn't tell them about it, to your
17 knowledge, right?

18 A No.

19 Q Okay. And did they come to you after they
20 found these pictures or texts?

21 A Yes.

22 MS. SAMMONS: I don't think there's any
23 discussion of pictures. I think she said --

24 THE WITNESS: Yeah, it could have been
25 texts.

1 BY MR. PEARLSON:

2 Q Okay. Well, let me rephrase the question
3 then. After they discovered Ella's relationship --
4 and first of all, were they looking at Ella's phone?
5 Is that how they --

6 A I don't remember what phone. I just
7 remember they found texts. I don't remember what
8 phone.

9 Q Okay. And had you ever seen these texts
10 before, the ones they found?

11 MR. GREIFINGER: Objection.

12 You may answer.

13 THE WITNESS: No.

14 BY MR. PEARLSON:

15 Q Okay. And at this point, again, I believe
16 you said at no point did you ever monitor her texts,
17 right, Ella's texts?

18 A No.

19 Q Okay. When they came to you, what did you
20 tell them about the relationship between Brad and BB -
21 - I mean, Ella?

22 MS. SAMMONS: Objection. You're
23 looping them both in together. Can we separate them
24 out? Because I don't think she testified that it
25 happened all at one time.

1 MR. PEARLSON: Fair enough.

2 BY MR. PEARLSON:

3 Q Ms. Cannon, did Grace and BB come to you at
4 the same time with the texts?

5 MR. GREIFINGER: Objection to form.

6 THE WITNESS: I don't remember who came
7 first or -- I don't remember.

8 BY MR. PEARLSON:

9 Q Okay. Do you recall what you told -- let's
10 stick with BB. What did you tell BB about the
11 relationship between Brad and Ella when she came to
12 you with these texts?

13 A Well, I definitely don't remember the
14 conversation really well, but I'm sure I tried to
15 explain what happened. And that they had had a
16 friendship that, you know, had gone wrong.

17 Q Ms. Cannon, when you looked at these texts,
18 did they indicate in any way that Brad and Ella were
19 still having a relationship?

20 A I didn't look at the texts.

21 Q You didn't look at the texts at all?

22 A I don't -- no.

23 Q So BB comes to you with texts saying,
24 "What's going on with Brad and Ella?" And you don't
25 look at the texts that led her to that discovery?

1 MR. GREIFINGER: Objection.

2 BY MR. PEARLSON:

3 Q Is that correct??

4 A I don't remember looking at them. I think,
5 maybe, they just explained that it showed that they
6 were more than friends, something like that, yeah.

7 Q Ms. Cannon, didn't you think it would be
8 smart, as a parent, to look at the texts that made
9 them upset?

10 MR. GREIFINGER: Objection.

11 BY MR. PEARLSON:

12 Q Go ahead. You can answer.

13 A They gave me an idea of what the general
14 idea was, and it didn't seem to need to have me look
15 at them specifically. I might have talked to Ella
16 about it. I can't remember if I went and said, "Ella,
17 you need to see what they saw." I don't remember.

18 Q I guess my question is though: But you never
19 looked at those texts. Is that correct?

20 A I don't remember --

21 MS. SAMMONS: Asked and answered.

22 BY MR. PEARLSON:

23 Q Go ahead. You can answer, Ms. Cannon.

24 A I don't remember looking at them.

25 Q Okay. Now, going back to the pre-prom

1 party, do you recall whether, you know, Brad had any
2 contact with your family at the pre-prom party?

3 A I don't remember, no.

4 Q Do you recall that Brad -- were you on the
5 lookout for Brad, to see what he was doing during the
6 party?

7 A No.

8 Q Do you know if Brad took pictures of your
9 family at the pre-prom party?

10 A I don't remember.

11 Q Okay. And you're saying you don't know one
12 way or the other whether he took pictures of your
13 family?

14 A I mean, I would think only if Eliza was in
15 it.

16 Q Okay. Were you aware that Brad was
17 following BB around at the party?

18 A No, I was not.

19 Q So if she said in her complaint that that's
20 -- that he was following her around at the party, that
21 wasn't something you noticed?

22 A I didn't notice.

23 Q Okay. Did you make a point of knowing where
24 your daughters were during the party?

25 MR. GREIFINGER: Objection.

1 MS. SAMMONS: Objection.

2 THE WITNESS: Well, this was a private
3 home with all of our friends. So I wasn't super
4 concerned about where they were. I mean, as long as I
5 knew they were in the party area, I felt confident
6 that they were okay.

7 BY MR. PEARLSON:

8 Q Did you ever tell BB and Grace to stay away
9 from Brad?

10 A Well, they were never near him, so I never
11 had to say it.

12 Q You never told them that?

13 A They were never around him, so I didn't have
14 the need to say that.

15 Q Okay.

16 A Plus they didn't want to go near him, as far
17 as I was understanding.

18 Q Was that something they expressed to you
19 after they discovered the texts on Ella's phone?

20 A Well, they didn't say those words, but they
21 were -- you know, they weren't happy with what
22 happened. Yeah.

23 Q Okay. What exactly -- let's start with BB.
24 What did she say about Brad after learning about his
25 relationship with Ella?

1 A I don't remember what she said. I just
2 remember her being very unhappy that it happened.

3 Q Did she express any opinions about Brad?

4 A I mean, I'm sure -- I don't remember her
5 expressing opinion about Brad. I don't remember, no.

6 Q Okay. After you found out about Brad and
7 Ella's relationship -- well, strike that. After you
8 had thought they had both decided not to see each
9 other anymore, did there come a point in time where
10 you became aware that they were, in fact, still seeing
11 each other?

12 A Yes.

13 Q Okay. When did you become aware that they
14 were still seeing each other?

15 A I don't remember when I became aware of
16 that.

17 Q Was it during 2016?

18 A Probably, maybe. I don't remember.

19 Q When did Ella go to college? When did she
20 leave for Colby?

21 A Yeah, so that would have been August or
22 September of 2016, right? I think.

23 Q Okay. And prior to that, prior to her
24 leaving for college, were you aware that she was still
25 maintaining a relationship with Brad?

1 A Yeah, I don't remember if I knew then. I
2 don't remember.

3 Q Okay. How did you learn that Ella and Brad
4 were still engaged in a relationship?

5 A I don't remember how I learned that.

6 Q Do you recall whether Brad gave Ella
7 anything for her graduation from high school?

8 A Well, I know now what he gave her.

9 Q I know. But my question was: Back then,
10 were you aware that he gave her a Cartier watch for a
11 graduation present?

12 A I don't think I was, no.

13 Q You never saw the Cartier watch around the
14 time of her graduation?

15 A No.

16 Q Okay. And when you found out -- what did
17 you find out about the nature of their relationship
18 and what it was at the time you learned that they were
19 still going on? That was a bad question. Let me
20 rephrase it. Ms. Cannon, did Ella tell you about the
21 nature of their relationship when you learned that
22 they were still seeing each other?

23 MS. SAMMONS: Objection.

24 THE WITNESS: I don't think she -- I
25 don't remember.

1 BY MR. PEARLSON:

2 Q Okay. And do you recall whether Ella was --
3 and now this is the time -- we're now talking in the
4 timeframe between, you know, May of 2016 to the time
5 she goes to college, was Ella still living with you
6 then?

7 A Yes. I know she was working or interning in
8 New York City at some point. But she was with us most
9 of the time, I think.

10 Q And she was taking trips into New York City
11 for her internship?

12 A Yeah, and she was staying there. Both. She
13 was doing trips and staying. I think that was that
14 summer. I'm not positive, but I thought it was then.

15 Q Where was she staying in New York City?

16 A With her aunt and with a friend, I think,
17 sometimes.

18 Q I'm sorry. She would stay with an aunt or?

19 A Or one of my friends.

20 Q Okay. And you were aware of where she was
21 staying when she went into New York?

22 A Yes.

23 Q How were you aware?

24 A She told me, and probably I was maybe
25 looking. She just told me where she was staying. I

1 mean, she was with her aunt or my friend, so generally
2 I probably just spoke to them and knew Ella was there.
3 I don't remember.

4 Q Okay. And was it at this point you also had
5 Find Your Phone activated?

6 A I probably did, yes.

7 Q Did you make a point of trying to know where
8 Ella was?

9 A Yeah.

10 Q Okay. And what about in terms of your
11 relationship with Brad now, after May of 2016, did you
12 start to have more frequent contact with Brad Mell?

13 A Well, I don't remember when exactly it
14 started, but he kept contacting me. Yeah.

15 Q Okay. When you say he kept contacting you,
16 how did he contact you?

17 A Text, I believe.

18 Q So he had your cell phone number?

19 A Well, yeah. He'd had it from the airplane
20 crash with BB.

21 Q Okay. And what was he texting you in the
22 spring of 2016?

23 A Well, he texted a lot of apologies, a lot of
24 apologies. And like different -- I feel like he would
25 contact for different, like maybe, if there was

1 something with Essex we'd have to discuss. He'd
2 always find some reason to contact.

3 Q How often did you have contact with Brad
4 Mell in the spring of 2016?

5 A I don't remember.

6 Q Other than text, did you also speak to him
7 on the phone?

8 A I don't think so.

9 Q Did you see him in person?

10 A No. No, I don't think so.

11 Q Was he allowed to come over to your house?

12 A No.

13 Q Did he come over to your house in the spring
14 of 2016?

15 A I don't think so. Spring of -- I don't
16 think so.

17 Q Okay. Did you and -- in the spring of 2016,
18 did you discuss Ella's relationship with Brad with
19 Brad?

20 MS. SAMMONS: Objection. Are we
21 talking about the time where she went to the Hunt
22 Club? I'm a little confused about the time here.
23 BY MR. PEARLSON:

24 Q Well, I said in the question: In the spring
25 of 2016, did you discuss the nature of -- were you

1 continuing to discuss the nature of Brad's
2 relationship with Ella with Brad?

3 A I don't remember that.

4 Q Did you ever have a group text with Ella and
5 Brad?

6 A At one point there was.

7 Q Okay. Do you recall when you started having
8 a group text with Ella and Brad?

9 A No.

10 Q Can you tell us why you had a group text
11 with Ella and Brad?

12 A Well --

13 Q Did you start with the group text after you
14 found out about their relationship in February of
15 2016?

16 A Unless there was a group text from the
17 accident, I don't know.

18 Q Okay. So how about group emails, did you
19 have group emails with Brad and with Ella?

20 A He would send emails to both of us, yes.

21 Q Okay. Did you participate in those group
22 texts with Ella and Brad?

23 A At some point, yes, I did.

24 Q Okay. What was your understanding as to why
25 there was a group text with you, and Ella, and Brad?

1 A Well, it depends what we were texting about.
2 I don't know what the topic was.

3 Q But I'm trying to understand, Ms. Cannon, is
4 that you testified that as of -- when you learned
5 about this incident, you wanted your daughter to stop
6 her relationship with Brad Mell. Then you participate
7 after that in a group text with her. Is that right?

8 A Well, eventually, yeah. Ella told me that -
9 - I can't remember when, but eventually she told me
10 that I had to pretty much accept the relationship
11 between the two of them or our relationship, hers and
12 mine, was not going to be nearly as close as we had
13 been forever.

14 Q Okay. So was that before or after she
15 graduated from high school?

16 A Oh, I think it would be after, but -- I'm
17 sure it would be after, I think, but I don't remember.

18 Q Okay. And what'd you say in response?

19 A I don't remember what I said.

20 Q So what did she tell you -- this is after
21 you thought they had broken up. What did she tell you
22 about what happened with their relationship between
23 February of 2016, and this time she tells you that you
24 better basically deal with it?

25 A I don't think she told me what happened with

1 their relationship during that time.

2 Q Did you ask?

3 A It was obvious just that their feelings were
4 still very strong, and that they still really cared
5 about each other.

6 Q When you learned about the fact that Brad
7 and Ella's relationship -- despite what you had
8 thought, that Brad and Ella's relationship was
9 continuing, did you talk to Brad about it?

10 A I don't remember.

11 Q Okay. Did you tell him to stop seeing Ella?

12 A That was --

13 MR. GREIFINGER: Wait a minute.

14 Objection.

15 BY MR. PEARLSON:

16 Q Okay. You can answer.

17 A I feel like that would have been a given. I
18 don't know if I even spoke to him to say that. I
19 don't remember.

20 Q But you participated in a group text with
21 him and Ella after that, right?

22 A I don't know when -- when that started after
23 this period of time, when that group text was.

24 Q Okay. On the group text, did you ever say
25 to Brad and Ella, "You guys have to stop. The two of

1 you have to stop this relationship"?

2 A I don't remember.

3 Q After finding out about the continuing
4 relationship between Ella and Brad, did you do
5 anything to try to cut Brad off from your family?

6 A Well, he wasn't really involved in our
7 family.

8 Q Okay. Was he allowed at your house?

9 A At some point he was allowed. At some point
10 he -- yeah, was allowed.

11 Q Okay. When you say at some point, when was
12 he allowed to come to your house?

13 A I don't remember.

14 Q For what purposes did he come to your house?

15 A Yeah. Well, he was never invited to my
16 house. He always called and asked to come. He asked
17 because he was one time practically suicidal. One
18 time, so -- just always upset, always upset, needed
19 something. I never invited him there.

20 Q Your testimony is you never invited him over
21 to your house?

22 A He always called -- not called, sorry. He
23 always contacted me, and asked to come to speak to me.
24 That's what he would do at some point. I don't
25 remember when.

1 Q Did you ever refuse to let him come to your
2 house?

3 A Probably, yeah.

4 Q Okay. Do you have any specific recollection
5 of refusing to allow him to come to your house?

6 A No, I don't remember when. No.

7 Q Okay. Was Brad ever given a key to your
8 house?

9 A Not that I ever knew of. No.

10 Q Was he ever given the alarm code to your
11 house?

12 A Not that I knew of.

13 Q Were you ever aware of Brad feeding your --
14 what pets did you have at your house?

15 A Many. I had horses, cows, a pig, goats,
16 chickens, ducks, dogs, cats.

17 Q Were you ever aware of Brad feeding your
18 pets while you were away?

19 A I don't remember that, no.

20 Q Do you recall texting Brad while he was
21 actually in your house to feed your pets?

22 A I don't remember that.

23 Q Okay. So as far as you know, Brad Mell was
24 never in your house when you weren't there?

25 A Well, no. I know now that he was, but not

1 then, no.

2 Q Okay. And it's your testimony that he never
3 was allowed, with your permission, to enter your house
4 when you weren't there?

5 MR. GREIFINGER: Objection.

6 MS. SAMMONS: I object as well.

7 THE WITNESS: Yeah, that's my memory.

8 MR. PEARLSON: Okay. Why don't we take
9 a -- now would be a good time to break for lunch.
10 What do you want to do? We can do a half hour to one
11 o'clock. Does that work --

12 THE WITNESS: I don't even need a whole
13 -- that would be almost -- I don't need a whole half
14 hour. I mean, whatever you want to do is fine.

15 MR. GREIFINGER: How about 12:45?

16 MR. PEARLSON: Why don't we say a half
17 hour -- a full half hour. Ten to one we'll be back
18 on.

19 THE WITNESS: Okay.

20 MR. GREIFINGER: Thank you.

21 MR. PEARLSON: Thank you.

22 THE REPORTER: Thank you, Counsel.

23 We're off the record at 12:22 p.m.

24 (Off the record.)

25 THE REPORTER: Okay, everybody. Thank

1 you very much. We're back on the record at 12:52 p.m.
2 Counsel, please go ahead.

3 MR. PEARLSON: Thank you.

4 BY MR. PEARLSON:

5 Q Ms. Cannon, when we broke, I believe you had
6 testified that you had not given Brad Mell access to
7 your house, either through a key or an alarm code,
8 correct?

9 A Yes.

10 Q And to be clear, you were not aware of him
11 having access to your house at any point in time?

12 A For as long -- for ever?

13 Q Forever.

14 A I mean, I'd found out that he accessed our
15 house after December 4th. Yeah, I found out he did.

16 Q Okay. But prior to that you had no idea
17 that he'd had access to your house?

18 A I don't remember having knowledge of that,
19 no.

20 Q Okay. And prior to that, you had no
21 knowledge that he was feeding your pets while you were
22 away?

23 A No. I don't have a memory of him feeding my
24 pets.

25 Q Now, Ms. Cannon, from the time your daughter

1 graduated from high school until she went to college,
2 we had talked a little bit about the contact you had
3 with Brad Mell. I just want to be clear: Are you
4 saying that Brad Mell always initiated contact with
5 you?

6 A Most -- definitely the majority of the time,
7 yeah.

8 Q Did you ever initiate contact with Brad
9 Mell?

10 A I don't remember.

11 Q You talked about the group text that you had
12 with Ella and Brad. Did you use a pseudonym for Brad
13 in connection --

14 A Never. No.

15 Q Did you ever refer to him -- you never used
16 the name "Caroline" in connection with texts with him?

17 A Never.

18 Q Okay. And Ella never used the Caroline in
19 connection with a text with Brad Mell?

20 A She might have. I don't know, but I never
21 did.

22 Q Were you ever on a text -- to your
23 recollection, were you ever on a text with Brad Mell,
24 where the heading was "Caroline"?

25 A I don't remember that.

1 Q Is it possible?

2 MR. GREIFINGER: Objection.

3 THE WITNESS: I have no idea. I don't
4 know.

5 BY MR. PEARLSON:

6 Q Okay. Now, Ella left for college in the
7 fall of 2016, correct?

8 A Yes.

9 Q And as we went over, she went to Colby?

10 A Yes.

11 Q Did she get into Colby regular admission,
12 that is admission in the fall of 2016 originally?

13 A Regular admission, yes. She got in for the
14 fall of 2016, yes.

15 Q Okay. Did she get in originally for the
16 fall of 2016 or for January of 2017?

17 A No. She got in for the fall of 2016.

18 Q Okay. Did you ever ask for or did Brad Mell
19 ever provide assistance to help her get into Colby?

20 A No.

21 Q Did Brad have anything to do with Ella
22 getting into Colby?

23 A No.

24 Q Now, as you testified before, Brad's
25 daughter, Eliza, was also going to Colby, right?

1 A Yes.

2 Q And when Ella moved up to Colby in the fall
3 of 2016, how'd she get up there?

4 A We drove.

5 Q Okay. And when you say "we," it was you and
6 Ella?

7 A Yes, Ella and I drove, yes.

8 Q Okay. Did other members of your family --
9 did other members of the Cannon family also go up to
10 Colby to help Ella move in?

11 A Yes.

12 Q Who did, from your family, other than --
13 after you and Ella drove up, who else went up to
14 Colby?

15 A It might have been my whole family, the rest
16 of my whole family, I think.

17 Q Okay. And when you say the rest of your
18 whole family, who is that?

19 A My husband, and BB, and Grace.

20 Q And how did they get up to Colby that fall
21 of 2016?

22 A I think they might have flown.

23 Q Okay. And they might have flown. Who did
24 they fly with when they went up to Colby?

25 A Probably the Mells.

1 Q Okay. And do you know how it came about
2 that the rest of your family flew up to Colby on --
3 and this is on Brad Mell's private plane?

4 A Yes.

5 Q How did that come about?

6 A I don't know. I don't remember.

7 Q Did you pay or reimburse Brad Mell for that
8 flight?

9 A I definitely offered. I can't remember if
10 it's this flight or the parents' weekend flight that I
11 offered. I always offered to pay. And one time he
12 did -- I sent him an \$800 check. I can't remember if
13 it was this flight or the one up to parents' weekend.

14 Q Okay. Other than the \$800 check, did you
15 ever actually pay for the flights on the Mells'
16 private plane?

17 A He would never accept any money. He would
18 never cash a check. He would never take any money.

19 Q At the time that Ella went to Colby, and
20 Eliza was going to Colby, did you have any concerns
21 about Brad visiting Ella at Colby?

22 A No.

23 Q Okay. And why was that? Did you think
24 their relationship was over at the time she started
25 Colby?

1 A I just didn't think -- you know, he has a
2 job, and I just assumed he wasn't going to be visiting
3 her a lot. And she was starting a new life there, I
4 figured, maybe she'd meet -- which she did. She met a
5 nice boy relatively early. And I was just thinking at
6 the time that probably maybe wasn't going to happen.

7 Q Ms. Cannon, at the time that Laura started
8 -- that Ella started Colby, isn't it a fact that you
9 knew that the relationship with her and Brad was still
10 going on?

11 A I can't remember when. I definitely knew it
12 was still going on. It could have been then, but I
13 don't remember when.

14 Q Did you know that they were still in
15 contact?

16 A Maybe then I did. I don't remember when I
17 figured all those -- knew all those things. I don't
18 remember.

19 Q Did you check her phone records to see if
20 she was contacting Brad or texting Brad?

21 A No.

22 Q And I assume that you were still in contact
23 with Brad when your family flew up to Colby on his
24 private plane. Is that correct?

25 A I don't remember how that happened or if we

1 had contact with each other for that. I don't
2 remember.

3 Q Okay. Now, you indicated also that in
4 addition to this trip, there was a trip for family
5 weekend. Was that also the fall of 2016?

6 A Yes. That would have been that same fall.

7 Q Okay. And who went up to see -- well,
8 strike that. First of all, you moved in Ella. Did
9 she seem Brad Mell?

10 MR. GREIFINGER: Objection. You mean
11 while the witness was there?

12 MR. PEARLSON: Yes.

13 BY MR. PEARLSON:

14 Q Were you aware of your daughter seeing Brad
15 Mell, while you were up there at Colby moving her in?

16 A I don't remember if they saw each other.

17 Q Did you do anything to keep her from seeing
18 him?

19 A I don't remember if -- I don't remember if
20 there was even a chance for me to keep them from
21 seeing each other. I don't remember.

22 Q Well, did you tell him before she went off
23 to college to stay away from her while she was in
24 college?

25 A No. I didn't say stay away from her when

1 she's in college, point blank.

2 Q All right. So when you went up, did you
3 have dinner or anything with the Mell family while you
4 were up moving your daughter in to college?

5 A I don't think so. No. I don't remember
6 having dinner with them.

7 Q Did you see the Mells at all while you were
8 up at Colby after part of your family flew up on
9 Brad's jet?

10 A I really don't remember.

11 Q How about family weekend, who flew up on
12 family weekend?

13 A Our family and their family. Maybe not
14 their oldest daughter though. I don't remember.

15 Q Okay. And when you say "our family and
16 their family," who from your family was flying up
17 there?

18 A Tony and, I believe -- actually, I don't
19 remember if the girls came or not. Yeah. They might
20 have. Yeah, maybe Ella -- maybe BB and Grace too.

21 Q And how long after you moved her in -- well,
22 first of all, I assume -- did your whole family fly
23 back to New Jersey on Brad's plane when you moved her
24 in?

25 A Yes, I think so. Yeah.

1 Q Okay. And then you flew up again family
2 weekend, right?

3 A Yes.

4 Q Was that a month or two after you moved her
5 in?

6 A Probably. I don't remember the date.

7 Q Okay. And do you recall -- and again, you
8 flew up in Brad Mell's private plane, correct?

9 A Yes.

10 Q And when you -- can you tell us how it ended
11 up that you ended up flying -- and you personally went
12 on that trip, right?

13 A Yes.

14 Q How were the arrangements made for you to
15 fly on Brad's private plane?

16 A I don't remember exactly how the
17 arrangements were made. I mean, they said they were
18 flying up, "Would you like to come since we're going
19 to the same place?"

20 Q And who would have that contact? Was it you
21 and Brad? Was it you and Kim --

22 A I don't remember, I don't remember.

23 Q Was it Anthony with anybody or was it you?

24 A No. It would not be Anthony.

25 Q So it would have been you?

1 A Me -- yeah, or Ella and Eliza figuring it
2 out. I don't remember.

3 Q Okay. So are you testifying that Ella and
4 Eliza might have had a role in scheduling your family
5 to fly on Brad's private plane?

6 A I'm saying they were friends, and they knew
7 both of our families -- I mean, I'm just guessing. I
8 don't know how it happened. So I mean, maybe they're
9 friends, maybe they spoke about it. I really don't
10 remember.

11 Q So is it -- I just want to be clear for the
12 record, do you not have a recollection and you're just
13 guessing or do you have a recollection --

14 A I do not have a recollection.

15 Q Okay. When you went up on Brad's private
16 plane, you flew up and back on that plane, correct?

17 A Yes.

18 MS. SAMMONS: Are you talking about
19 family weekend now, Ross?

20 MR. PEARLSON: Yes.

21 BY MR. PEARLSON:

22 Q And you didn't pay for that, right?

23 A I offered to pay. I don't remember if
24 that's the one I paid \$800 for or not. It was one --
25 it must have been that one that I paid \$800 for

1 actually. I must have been that one.

2 Q You wrote out a check to Brad?

3 A I mailed it. Yeah, I mailed it to him.

4 Q Okay. And that was made out to Brad
5 personally?

6 A Brad or -- yeah, it would have been made out
7 to Brad, yeah.

8 Q Where did Brad keep his airplane?

9 A Somerset Airport.

10 Q Okay. And in terms of the family weekend,
11 did you spend any time with the Mells when you went up
12 for family weekend to Colby?

13 A I don't remember really. I mean, maybe a
14 little bit, but not -- maybe a little bit. I don't
15 remember that well.

16 Q Okay. So now we're in the fall of -- do you
17 know whether Brad saw Ella while he was up there?

18 MR. GREIFINGER: Are you asking --
19 excuse me -- during family weekend?

20 MR. PEARLSON: Yes, correct.

21 THE WITNESS: I don't know if he saw
22 her that weekend.

23 BY MR. PEARLSON:

24 Q Did you tell him to stay away from her?

25 A No.

1 Q Did you tell him to stay away from your
2 family?

3 A No.

4 Q When you went up to Colby to visit your
5 daughter, did you ever have dinner with the Mells,
6 with the girls?

7 A I don't remember doing that. I don't think
8 we did have dinner. I don't remember doing that.

9 Q Now, and again, do you have any recollection
10 at this point whether you knew in the fall of 2016
11 that Brad and Ella were still having a sexual
12 relationship?

13 A A sexual relationship? No, I don't remember
14 knowing that.

15 Q How about any kind of relationship? Did you
16 know that they were maintaining a romantic
17 relationship?

18 A Maybe a -- like keeping in touch with each
19 other relationship. I don't remember knowing, like,
20 whether or not they were having a sexual relationship
21 or romantic. I don't remember.

22 Q Okay. Now, did you recall that in that
23 spring of 2017 that --

24 A Spring of 2017? Okay. Yeah.

25 Q Yeah. You went up to visit -- did you go up

1 to visit Ella for her birthday?

2 A Yes.

3 Q Okay. Can you pull up Laura Cannon 1? We
4 can just start with that and go in order. If you go
5 to the cover page first. So I'm going to show you
6 what's been marked as LC1 for identification. Have
7 you ever seen this document before?

8 MR. PEARLSON: Go ahead, Counsel.

9 MR. GREIFINGER: Well, let the record
10 reflect you're showing a little tiny snippet of a
11 pleading.

12 BY MR. PEARLSON:

13 Q Well, let me ask you. Ms. Cannon, have you
14 ever seen the complaint in this action, any version?

15 A So I was told that this document --

16 MS. SAMMONS: I'm going to object, and
17 I'm going to direct the client. If what you're about
18 to say comes from communication with counsel, and I
19 mean particularly my office, then I'm going to ask you
20 not to answer using any information you got from our
21 office.

22 MR. PEARLSON: I'm not asking for that.
23 I'm just asking whether she's seen the document,
24 Diane.

25 THE WITNESS: No, no.

1 BY MR. PEARLSON:

2 Q Okay. I'm going to direct you to Paragraph
3 58. I'll represent to you that this is the second
4 amended complaint filed by your daughter, BB, in this
5 action. And if we can enlarge Paragraph 58. It says
6 here, "Later in the spring of 2017, Mell again flew
7 BB's family up to visit BB's sister at BB's college on
8 BB's sister's birthday." Do you recall that your
9 family went up to visit Ella at Colby in the spring of
10 2017 for her birthday?

11 A It wasn't my whole family. I don't think my
12 husband came.

13 Q Okay. So who from your family went to visit
14 your daughter, Ella, for her birthday?

15 A I think it might have just been me and BB,
16 but maybe Grace came. I don't remember.

17 Q Okay. Do you recall flying up again in
18 Brad's private plane to go visit Ella for her
19 birthday?

20 A Yes.

21 Q Okay. And did Brad go with you?

22 A Did Brad go with me on the plane?

23 Q Yes.

24 A I think he might have been -- I don't
25 remember who was flying. He might have been flying

1 the plane, yeah.

2 Q Okay. So he flew the plane. Do you recall
3 how it came about that Brad -- that you ended up on
4 Brad Mell's private plane with him flying you up to
5 Colby in the spring of 2017?

6 A Well, Brad continually offered these kinds
7 of things because he was on his way up. And, you
8 know, he said, "I'm going to see Eliza's game. You
9 should come." And he was always just feeling very
10 badly about what he'd done to our family and all that.
11 So he was always trying to be -- trying to make up for
12 what he did by doing things like this.

13 He was already going and he said, "You
14 should come." I don't know if we had that
15 conversation for this flight, but that was always his
16 reasoning behind doing things like this.

17 Q Okay. We'll get to that. For this
18 particular trip, Brad Mell was already flying up to
19 Colby for Ella's birthday?

20 A No. For maybe a game or to see Eliza.
21 Usually -- I mean, I don't remember specifically, but
22 almost every time he was -- we only flew when he was
23 -- usually when he was already going somewhere.

24 Q Okay. So he's -- in any event, it's just
25 you -- Brad Mell is flying the plane for you to go

1 visit your daughter on her birthday at Colby, correct,
2 in the spring of 2000 --

3 MS. SAMMONS: Objection. She testified
4 that there might have been another reason for him to
5 be going there. But yes, that was one of the reasons.

6 MR. PEARLSON: Diane, can you stop the
7 speaking objections?

8 MS. SAMMONS: Well, will you please
9 accurately represent her testimony in your
10 questioning, please?

11 MR. PEARLSON: This isn't your witness,
12 and you can object to form, and that's it.

13 BY MR. PEARLSON:

14 Q Now, Ms. Cannon, my question is: It says in
15 the next sentence that, "It was during this visit that
16 Mell invited BB, BB's mom, and BB's younger sister to
17 take turns sitting in the cockpit." Do you recall
18 that on that flight up to Colby that Brad invited each
19 of you to sit in the cockpit at one point?

20 A Yes. He was very passionate about flying,
21 and getting people to fly. Yes.

22 Q Okay. So is it true, as it says in this
23 complaint, that you and your two younger daughter each
24 took turns sitting with Brad in the cockpit?

25 A I don't know if I took a turn. I'm sure he

1 invited me to take a turn, but I do believe both the
2 girls did.

3 Q Okay. And do you know how long each of them
4 was in the cockpit with Brad alone?

5 A Not terribly long, I don't think. I mean,
6 they weren't alone. I could see them.

7 Q So what changed? Why would -- strike that.
8 I thought you said that Grace and BB didn't like Brad.

9 A Yeah, they didn't really like him, yeah.

10 Q Okay. But they wanted to sit in the cockpit
11 with him during a flight on his private plane?

12 A I think they thought he was being kind and
13 nice, and they were just being respectful and nice in
14 return.

15 Q Okay. And you allowed that?

16 A For them to try out flying, yes.

17 Q Okay. And you didn't do anything to cut off
18 your daughter's contact with Brad Mell in the spring
19 of 2017, right?

20 MS. SAMMONS: Objection --

21 MR. GREIFINGER: Wait a minute. You're
22 now going back to the spring?

23 MR. PEARLSON: Well, no. This was the
24 spring. The paragraph I'm reading from is the spring.

25 MR. GREIFINGER: Okay.

1 MR. PEARLSON: "In the spring of 2017"

2 --

3 MR. GREIFINGER: Okay. Withdrawn. My
4 mistake.

5 MS. SAMMONS: My objection is: Which
6 daughter?

7 MR. PEARLSON: I asked her both.

8 BY MR. PEARLSON:

9 Q Ms. Cannon, do you understand my question?
10 Did you do anything in the spring of 2017 to cut off
11 your daughters from having contact with Brad Mell?

12 A Well, there was only one daughter that I
13 knew of that was having any contact with Brad Mell, I
14 believe, at that time. Yeah, it was only one.

15 Q When you went up for Ella's birthday, did
16 Brad celebrate with you, Ella's birthday, on that
17 trip?

18 A No.

19 Q Did Brad spend any time with Ella on that
20 trip?

21 A I don't know.

22 Q Did you ever reimburse Brad for that trip,
23 the one for Ella's birthday?

24 A He would never take reimbursement.

25 Q Now we'll go to Paragraph 55. Now, Ms.

1 Cannon, you had talked about some trips to Nantucket.
2 This is -- again, I'm reading from BB's complaint.
3 Paragraph 55 says, "In the summer of 2016, Mell took
4 BB and some of her family members on flights to New
5 England, first Nantucket, and later in the summer to
6 Maine." Now, in the summer of 2016, let's start first
7 with Nantucket. Are you aware that Brad Mell took BB
8 and some of your family members to Nantucket in the
9 summer of 2016?

10 A Took some of my family members? Well, who
11 are you saying flew to Nantucket in the summer of
12 2016?

13 Q I'm asking you, Ms. Cannon, if you have a
14 recollection. This is shortly after her graduation
15 from high school -- from Ella's graduation from high
16 school. The allegation is that he took BB and some of
17 your other family members on a flight to Nantucket.
18 Do you recall that?

19 A I don't remember.

20 Q Do you recall ever flying to Nantucket on
21 Brad Mell's private plane?

22 A Yes, maybe once, maybe.

23 Q Just once?

24 A That's what I can remember.

25 Q Okay. Do you recall that your daughters

1 flew to -- well, let's start first with BB. Are you
2 aware that BB flew to Nantucket on Brad Mell's private
3 plane in the summer of 2016?

4 A I don't remember that, no.

5 Q Okay. Could she have done that without your
6 permission?

7 MR. GREIFINGER: Wait. Objection.

8 BY MR. PEARLSON:

9 Q Could she have flown, if she flew to
10 Nantucket in the summer of 2016, as alleged, on Brad's
11 private plane, could she have done that without you
12 knowing about it?

13 A No.

14 Q And how about do you recall if Ella flew to
15 Nantucket in the summer of 2016 in Brad's private
16 plane?

17 A I don't remember that.

18 Q How about to Maine in the summer of 2016?
19 Do you remember any of your family members traveling
20 on Brad Mell's private plane in the summer of 2016 and
21 going to Maine?

22 A I don't remember that.

23 Q Are you saying it didn't happen or you just
24 don't recall?

25 A No, I don't recall.

1 Q Are you saying that you weren't on it or you
2 just don't --

3 A I just don't have any memory of anybody
4 flying to Maine. I don't remember that.

5 Q Okay. And again, these are BB's
6 allegations. So if she said that she -- if she said
7 that she and some of her family members went to Maine
8 in the summer of 2016, is she wrong or you just don't
9 remember?

10 MR. GREIFINGER: Objection --

11 THE WITNESS: No. I just don't
12 remember all the way back to 2016. The flight, I just
13 don't remember.

14 MR. GREIFINGER: She's said that four
15 times.

16 BY MR. PEARLSON:

17 Q Do you remember at any time, Ms. Cannon,
18 your family flying to Maine -- to some place other
19 than Colby?

20 A I don't remember. I don't remember back --
21 I don't remember back then.

22 Q Okay. Then the next paragraph, and this is
23 Paragraph 56 of the complaint, it says, "These flights
24 continued into the fall of 2016." It says, "On one
25 occasion, Mell took BB, her mom, and BB's sister on a

1 helicopter ride around New York City." Do you see
2 that?

3 A Yes.

4 Q In the fall of 2016, did you go for a
5 helicopter ride with Brad Mell?

6 A Yes.

7 Q Okay. And who else from your family went on
8 that helicopter ride?

9 A I don't remember who else was on it.

10 Q Well, it says one of them was BB. Do you
11 recall that BB was on the flight?

12 A I don't honestly remember who was on the
13 flight.

14 Q How did that helicopter ride come about?

15 A Yeah. I don't remember how it was organized
16 in terms of who contacted who. I don't remember.

17 Q Are you saying that you -- do you know who
18 arranged for the helicopter ride? Was it Brad --

19 A Yeah, I don't know who did that.

20 Q Okay. You just showed up and went on a
21 helicopter around New York City?

22 MR. GREIFINGER: Objection.

23 MS. SAMMONS: Objection.

24 THE WITNESS: I'm saying I just don't
25 remember who -- how it was organized.

1 BY MR. PEARLSON:

2 Q Did you organize it?

3 MR. GREIFINGER: Objection.

4 MS. SAMMONS: Objection. She said she
5 doesn't know.

6 BY MR. PEARLSON:

7 Q Ms. Cannon, my question is: Did you organize
8 the helicopter ride around New York City with Brad and
9 your daughter, BB?

10 MR. GREIFINGER: Objection.

11 THE WITNESS: I don't remember.

12 BY MR. PEARLSON:

13 Q Do you remember whether you paid for the
14 helicopter ride around New York City?

15 A I almost always offered to pay, and he would
16 never accept money.

17 Q Okay. Do you know why you were going on a
18 helicopter ride around New York City with Brad Mell?

19 A I mean, I guess it was because he was
20 appreciative of me selling his condo.

21 Q Ms. Cannon, I'm not asking what the document
22 says. Do you recall why you were --

23 A I don't --

24 MR. GREIFINGER: She just answered that
25 question.

1 MR. PEARLSON: No, she was reading from
2 the document, Richard. My question is different --

3 MR. GREIFINGER: If you want to ask if
4 she was reading or that thought was already in her
5 mind, it's an honest answer to your question.

6 MR. PEARLSON: Richard, stop.

7 MR. GREIFINGER: No, you stop. Your
8 follow-up question was wholly improper and borders on
9 harassment. She answered it.

10 MR. PEARLSON: Can you stop with the
11 speaking colloquies?

12 BY MR. PEARLSON:

13 Q Ms. Cannon, my question is this: Do you
14 recall what the -- as you sit here today, what the
15 reason was for the helicopter ride?

16 MR. GREIFINGER: Objection.

17 BY MR. PEARLSON:

18 Q You can answer.

19 A I don't remember 100 percent what it was
20 for.

21 Q Okay. Now, you indicated at some point you
22 sold a condominium for Mr. Mell?

23 A Yes.

24 Q Okay. Was that through Turpin?

25 A Yes.

1 Q Okay. Where was that condominium located?

2 A Far Hills, I believe, is the town. I don't
3 remember if it's Far Hills or Bridgewater.

4 Q Okay. And were you his broker of record for
5 the sale?

6 A I'm not a broker.

7 Q Okay. Did you get paid a commission in
8 connection with the sale?

9 A Yes. I had to split commission with another
10 agent from my office that was doing the listing with
11 me.

12 Q When was the sale of that condominium? When
13 did it take place?

14 A I think it closed, maybe, October, maybe, of
15 --

16 Q What year?

17 A October of 2016. Maybe around then. I
18 don't know for sure the date. I can find it
19 obviously, if I looked it up, but I don't remember.

20 Q How did it come about that you became a
21 broker for, or I should say involved, in selling Mr.
22 Mell's Far Hills condominium?

23 A Actually, he contacted that other realtor
24 that I ended up listing it with before he even came to
25 ask me. He asked me. He asked me to do it, but he

1 contacted the other relator first before even asking
2 me, to ask them -- to tell them that he wanted me to
3 do it with them.

4 Q Did he ask you to do it or did you ask him
5 once you found out that he was listing his condominium
6 --

7 A He asked me to do it.

8 Q Okay. And this is in the fall of 2016?

9 A I believe so, yeah.

10 Q And what was the commission that you earned
11 on the sale of the condominium?

12 A You mean the exact number of -- the check,
13 like the dollars I got?

14 Q Yeah.

15 A I don't remember.

16 Q And was this -- was the commission written
17 on a check from Turpin?

18 A Yes.

19 Q Mr. Mell didn't write you a check directly?

20 A No.

21 Q Now, you say you don't recall whether your
22 family flew to Nantucket with Brad Mell in the summer
23 of 2016, correct?

24 A I don't remember.

25 Q Do you recall if your family vacationed in

1 Nantucket in the summer of 2016?

2 A Yes, I believe we did.

3 Q Had you ever -- when was the first time that
4 your family had vacationed in Nantucket?

5 A I vacationed in Nantucket when I was a child
6 for many years.

7 Q Okay. How about your family, after you were
8 married, when was the first time you vacationed in
9 Nantucket?

10 A I don't remember. I'd have to look. I
11 don't remember the first year we went back.

12 Q Is 2000 --

13 A Oh, no. Ella was in the Willow School, so
14 she was in middle school, so not in high school.

15 Q Okay. And had you vacationed in -- prior to
16 2016, had you vacationed in Nantucket since then, that
17 one time?

18 A Sorry --

19 MR. GREIFINGER: Objection to that.

20 THE WITNESS: I don't -- can you ask --
21 I didn't understand.

22 BY MR. PEARLSON:

23 Q Yeah. Let me rephrase it, Ms. Cannon. The
24 time period between when you went to Nantucket when
25 she was in middle school until the summer of 2016,

1 were there any other times you went to Nantucket in
2 between there?

3 A I believe so, yes. Yeah.

4 Q Okay. Now, when you went to Nantucket in
5 the summer of 2016, where did you stay?

6 A We rented a little house.

7 Q And how long did you rent the house for?

8 A I don't remember if it was a week or two.
9 One or two weeks, I believe.

10 Q Were the Mells there at the same time you
11 were there?

12 A I don't know.

13 Q Okay. And as you sit here, you don't recall
14 whether you or any other members of your family took
15 Brad's plane to get to Nantucket that summer?

16 A I don't remember.

17 Q Did you and your family or any of your
18 family members spend time with the Mells while you
19 were in Nantucket that summer?

20 A I don't remember. I don't know if Ella saw
21 Eliza. I don't remember. I don't know. I really
22 have no idea.

23 Q Okay. Did you also vacation in Nantucket in
24 the summer of 2017?

25 A I believe so. I believe so. Yeah.

1 Q Okay. And who from your family went to
2 Nantucket in the summer of 2017?

3 A All of us, I believe. I mean, I don't think
4 my husband was there the whole time because he had to
5 work, but we all -- I'm pretty sure we all were there.

6 Q Okay. Did you also rent a house during that
7 time?

8 A Yes.

9 Q Were you ever at the Mells' house in
10 Nantucket?

11 A I was at the Mells' house when we went to
12 the lobster dinner.

13 Q Was that in the summer of 2016 or the summer
14 of 2017?

15 A No. No, that was right after BB's accident.
16 So that would have been July -- that was the same
17 summer, like, right at the same time as BB's accident
18 --

19 MR. PEARLSON: May I ask the reporter
20 to -- excuse me. Since we're not using this document,
21 I would ask the reporter to explain to me how I can
22 take it off, so I can see the people.

23 MR. GREIFINGER: We can take it off.

24 MR. PEARLSON: Thank you.

25 //

1 BY MR. PEARLSON:

2 Q Are you aware of your daughters, any of your
3 daughters, spending time at the Mells' house in
4 Nantucket?

5 A No.

6 Q Did they ever -- when you went out to
7 Nantucket in the summer of 2017, how did you get
8 there?

9 A I don't remember. But we had a car, so
10 maybe I drove.

11 Q Do you recall whether Brad flew you or any
12 of your family members up to Nantucket that summer?

13 A I don't remember, no.

14 Q Do you recall whether -- spending any time
15 with the Mells on that trip --

16 A No.

17 Q Did BB have her birthday while she was on
18 Nantucket?

19 A Yes.

20 Q Okay. Do you recall Brad Mell coming over
21 with a birthday card and gift --

22 A Yes.

23 Q -- that summer?

24 A Yes, showing up uninvited, yes.

25 Q Okay. You didn't tell him to go away, did

1 you?

2 A No.

3 Q And he gave BB the card and gift in front of
4 everybody?

5 A I don't know if it was in front of
6 everybody, but he gave it to her, yeah.

7 Q All right. You were aware that he gave her
8 a card and gift for her birthday, right?

9 A Yes.

10 Q Do you know what the gift was?

11 A No.

12 Q Were you aware also that Brad had purchased
13 a new Jeep that summer?

14 A Yes.

15 Q How were you aware that he had a new Jeep?

16 A He drove up in it, I believe. He brought --
17 that's what he drove when he came to the house.

18 Q And when he came to the house for what?

19 A When he showed up.

20 Q Okay. When he showed up for BB's birthday
21 or something different?

22 A No, that day. The day that he came with the
23 gift.

24 Q Was there also a day where he took your
25 daughters for a ride around Nantucket on his new Jeep?

1 A That was the same day, I believe.

2 Q Okay. So to keep the record clear, he shows
3 up, gives your daughter a birthday card and gift, and
4 then takes your daughters for a ride on Nantucket in
5 his new Jeep?

6 A My daughters and friends. Not just my
7 daughters.

8 Q Okay. How many friends?

9 A I don't remember. Maybe -- I don't remember
10 how many were there at the time, but there were
11 friends there.

12 Q Okay. Other than what we've discussed in
13 terms of flights on Brad's plane, are there any other
14 flights that you can recall that you took on Brad
15 Mell's plane or your family members?

16 A No.

17 Q Okay. How about helicopter rides? Other
18 than the one we described, were there any helicopter
19 rides?

20 A Well, yeah. I mean, not a ride, but I know
21 he came in once to give BB -- I think he was doing
22 flying -- helicopter flying practice, and came in and
23 picked me and Ella up, I believe.

24 Q I'm sorry. Where were you when he came to
25 pick you up?

1 A In the city.

2 Q Okay. And he came to pick you up how? What
3 was he flying?

4 A His helicopter.

5 Q Okay. And who was he picking up?

6 A Me and Ella, I believe.

7 Q Okay. And what were you and Ella doing in
8 the city?

9 A I don't remember. I might have -- I don't
10 remember what I was doing in the city.

11 Q Do you recall when this took place?

12 A No.

13 Q And do you recall how it came about that
14 Brad Mell was picking you and Ella up in a helicopter
15 in New York City?

16 A No.

17 Q Did you ask him to pick you up?

18 A No.

19 Q You indicated he flew with BB into New York
20 City?

21 A I think. I can't remember actually. I
22 don't know for sure.

23 Q How did -- do you know how BB got to the
24 airport or the helicopter pad?

25 A No.

1 Q Do you know how it came about -- who
2 arranged for BB to fly into New York City with Brad?

3 A I don't remember.

4 Q Did you know that BB was flying into New
5 York City with Brad?

6 A I don't remember. I mean, I don't know.

7 Q Do you know whether BB was being picked up
8 at the house by Brad?

9 A I don't know.

10 MR. PEARLSON: Can we go back to the
11 complaint?

12 BY MR. PEARLSON:

13 Q I'm going to -- Ms. Cannon, I'm going to
14 direct you to Paragraph 68 of BB's amended complaint.

15 A Yeah, I see it, 68.

16 Q Paragraph 68 says, "BB held a long-term
17 desire to learn to the fly. And in or about June 3,
18 2017, Mell took BB to sign up for flying lessons."
19 First of all, when did BB first indicate to you that
20 she wanted to learn to fly?

21 A The first time would have been when BB and I
22 were cleaning out the basement, and we came across my
23 -- my husband and I both started to get our pilot's
24 license. And we came across my bag that had the
25 headphones and everything in it. And BB was

1 interested in it, and we were talking about it. And
2 she said, "I'd like to do that."

3 Q Do you recall when that was that you had
4 that conversation with her?

5 A No. I mean, no, I don't remember when.

6 Q Was she -- I mean, was she really young?
7 Was she --

8 A She was young.

9 Q Did you ever give her flying lessons at any
10 point in time prior to June 3, 2017?

11 A Actually, I'm trying to remember if we ever
12 -- we definitely talked about it a lot, but I don't
13 remember if we -- I might have once tried to organize
14 them. They give you a sample one -- not a sample one,
15 but you try it out before you sign up for the things.
16 But I don't know if she ever -- we ever had time to go
17 do the one lesson.

18 Q Ms. Cannon, did BB -- before June 3, 2017,
19 did BB ever take flying lessons?

20 A No.

21 Q Okay. Now, it says -- and did her interest
22 in flying lessons have anything to do with flying on
23 Brad Mell's private plane?

24 MR. GREIFINGER: Objection.

25 THE WITNESS: Wait, I didn't -- can you

1 ask that again? I didn't hear what you said.

2 BY MR. PEARLSON:

3 Q Her interest in taking flying lessons, did
4 that have anything to do with her flights on Brad
5 Mell's private plane?

6 A Well, I'm sure that experiencing it, you
7 know -- sorry -- yourself, like sitting in the cockpit
8 probably might have made her interested in it. Yeah.

9 Q Did she ever tell you that?

10 A I'm sorry. I don't remember that
11 conversation. I don't remember having it. I don't
12 know.

13 Q Okay. Is it true that in the beginning of
14 June 2017, Brad took BB to sign her up for flying
15 lessons?

16 A Yes. I don't remember the date, but yes, he
17 took her to sign up for flying lessons.

18 Q Did he pick her up at the house and drive
19 her to the airport?

20 A I don't remember how that -- if I took her,
21 or he came and got her. I don't remember.

22 Q Okay. You don't recall whether you were
23 there?

24 A I don't recall if I was there or not.

25 Q In any event, do you know that it was Brad

1 who signed her up for the flying lessons?

2 A Yes because he said he could get a very good
3 discount because of his planes being there, and he'd
4 get the best instructor for her, and all of that.

5 Q Okay. And did he, in fact, sign her up for
6 flying lessons in June of '17?

7 A Yes.

8 Q Did he also pay for those flying lessons?

9 A He did.

10 Q Do you have any idea what they cost?

11 A My husband would because we ended up,
12 obviously, paying for them, but I don't remember.

13 Q What do you mean you obviously ended up
14 paying for them?

15 A Well, she continued and we ended up paying
16 for those. And when she continued after whatever
17 happened, you know, we found out all that.

18 Q Okay. Did you -- Brad went with her to her
19 flying lessons?

20 A He didn't go with her to her flying lessons.

21 Q Okay. Were you the one who drove her to her
22 flying lessons?

23 A I mean, I probably drove her. Yeah, I
24 probably usually drove her.

25 Q But to the best of your knowledge, Brad

1 wasn't there?

2 A No.

3 Q Okay. It says in the next paragraph,
4 Paragraph 69, "On June 9, 2017, he took BB to
5 Princeton on his plane, which had to be moved to
6 accommodate the president coming into town." Were you
7 aware that BB flew on Brad's plane to Princeton at
8 that time?

9 A I believe he texted me to ask if she could
10 do that, so she could get experience, you know,
11 flying. But there was supposed to be another adult
12 doing that with them, as far as I remember.

13 Q Okay. Well, let's just break it down. So
14 Brad texted you to ask for your permission to fly with
15 BB to Princeton in June of 2017, right?

16 A Mm-hmm.

17 Q That's a yes?

18 A Yes, sorry.

19 Q And you allowed that, correct?

20 A Yes because she was interested in flying.
21 Yeah.

22 Q Okay. And did you have her, you know, Find
23 Your Phone app and/or the 360 app you talked about
24 working at this time?

25 A Yes.

1 Q So you tracked her going to Princeton and
2 back, correct?

3 A Probably.

4 Q Okay. In the next paragraph, it says,
5 "Thereafter in mid-June, BB saw Mell as he was
6 intending to fly to New York City to pick up BB's
7 sister and her mother." Does this refresh your
8 recollection that it was June of -- mid-June 2017 that
9 Brad picked you up in New York City, you and Ella?

10 A It definitely could have been that, yeah. I
11 mean, I don't remember, but that could be true, yeah.
12 That timing, yeah.

13 Q Okay. And it says here that, "Mell came
14 earlier than the expected time to BB's home, and they
15 went for a swim in BB's family pool." Do you see
16 that?

17 A I see it.

18 Q Did you have a pool at your house in
19 Whitehouse Station?

20 A Yes.

21 Q Were you aware that Brad was picking BB up
22 at your house to take her into New York City -- to fly
23 her into New York City?

24 A I don't remember if I was -- I don't
25 remember.

1 Q Okay. Well, how did you think BB was going
2 to get to New York -- to the airport if Brad didn't
3 pick her up?

4 A I don't remember if it was my husband. I
5 don't remember the day. I don't remember who was home
6 or what was happening. I don't remember.

7 Q Is it fair to say that -- did you have video
8 cameras in the house at that time?

9 A No. Not until after December 4th did we
10 have video cameras in the house.

11 Q Okay. But you had that Arlo camera in the
12 driveway, right?

13 A Yes, which didn't work very well.

14 Q Now, it says here in the next paragraph, 71,
15 that, "BB slept over at Mell's house on several
16 occasions between June 20, 2017 and July 5, 2017."
17 Were you home during that period?

18 A I don't know if I was home every single day.
19 I don't know. I don't remember.

20 Q Were you aware that your daughter, BB, was
21 sleeping over at the Mell's house during that time
22 period?

23 A No.

24 Q Do you recall her sleeping over at anybody's
25 house during that time period?

1 A I don't remember if she slept at somebody's
2 house. I don't remember.

3 Q Okay. Is it fair to say that you wouldn't
4 have allowed her to sleep over at the Mells' house?

5 A No. I would not have allowed her to sleep
6 at their house.

7 Q Why is that?

8 A Her, by herself with him, it just wasn't
9 right.

10 Q Okay. Was it because you were worried about
11 Brad?

12 A No. At that time I did not know he was a
13 pedophile at all, obviously.

14 Q So why do you say that? Why wouldn't you
15 have allowed her to sleep over at the Mells' house?

16 A It's inappropriate and weird.

17 Q Was there ever a time when you and Brad flew
18 up to Colby, just the two of you?

19 A I don't remember.

20 Q Do you recall that you had to stay over in
21 Largo, Maine [ph] because of weather?

22 A I don't. I don't remember that.

23 Q You don't recall having to get a hotel, and
24 you and Brad shared a room?

25 A We never shared a room. We never shared a

1 room ever.

2 Q Now, the summer of 2017, the vacation you
3 went on in Nantucket, did Ella fly -- did Ella go to
4 Nantucket directly with you? Did she go directly to
5 Nantucket on that vacation?

6 A Summer of 2017?

7 Q Yes.

8 A This is July then?

9 Q Yes.

10 A No. I think she was with friends first, I
11 think.

12 Q Okay. And where was she with her friends
13 before she went to Nantucket?

14 A Cape Cod.

15 Q Okay. And how did she get to Cape Cod that
16 summer before your vacation?

17 A Yeah, Brad took her in a plane up there, I
18 believe. Dropped her off.

19 Q Okay. And did you know -- well, first of
20 all, how did it come about that Brad --

21 A I don't remember. I have no idea.

22 Q You have no idea? Did you know at the time
23 that she was flying to Cape Cod with Brad on his
24 private plan?

25 A Yeah, I don't remember. I don't remember.

1 Q Okay. Do you recall that BB also went on
2 the private plane with Brad to Cape Cod --

3 A I know that now. I don't remember, I don't
4 remember.

5 Q Is there any reason you wouldn't have known
6 that at the time?

7 A I mean, I don't know.

8 Q Okay. Well, both of your daughters are
9 flying to Cape Cod on Brad Mell's private plane.
10 You're saying that you don't know they were doing
11 that?

12 A I'm saying I don't remember, like, if I knew
13 about the plans or not. I don't remember.

14 Q Okay. Do you recall whether you authorized
15 or gave Brad permission to fly them to Cape Cod?

16 MS. SAMMONS: Objection. How is she
17 going to remember that she gave them permission?

18 BY MR. PEARLSON:

19 Q Do you recall that BB flew back by herself
20 with Brad from --

21 A I -- well, I know that now. I don't
22 remember that happening at that time.

23 Q Wouldn't your Find My Phone and your 360
24 show that they were flying to --

25 A I didn't nonstop stare at my phone and

1 MyLife360. I mean, I checked it sometimes. I wasn't
2 always just watching my phone.

3 Q Are you saying it's possible you didn't know
4 where either --

5 A I'm not -- I'm saying I don't remember. I'm
6 just saying I don't remember. That's it.

7 Q Is it possible that Ella and BB flew to Cape
8 Cod, and BB flew back, and you didn't know about it?

9 MS. SAMMONS: Objection to the
10 hypothetical.

11 BY MR. PEARLSON:

12 Q You can answer.

13 A I mean, it does seem doubtful that I
14 wouldn't have had some idea, but I don't remember.

15 Q Okay. Is it possible you do?

16 MS. SAMMONS: Objection, asked and
17 answered.

18 MR. GREIFINGER: Anything is possible.
19 Different objection.

20 THE WITNESS: Should I answer?

21 MR. PEARLSON: Go ahead, please.

22 THE WITNESS: Yes. I mean, it would be
23 possible, yeah.

24 BY MR. PEARLSON:

25 Q Now, in addition to the trips we've talked

1 about, did Brad Mell also give your family concert
2 tickets?

3 A Yes.

4 Q How many concerts did he give you tickets
5 to?

6 A Three, I think.

7 Q Okay. What concerts did he give you tickets
8 to?

9 A Rihanna, Zac Brown, and Garth Brooks, I
10 believe.

11 Q Let's break it down. Rihanna, do you recall
12 when that concert was?

13 A No.

14 Q Do you remember where it was?

15 A Well, it had to be at a stadium --
16 obviously, we drove. It must have been in New York
17 City somewhere or around New York. I don't remember
18 where.

19 Q Do you recall that -- you knew about Brad
20 Mell ended up giving your family tickets to a Rihanna
21 concert?

22 A He said that he bought them for somebody
23 else and they couldn't be used, so did we want to use
24 them.

25 Q And did he go as well?

1 A No.

2 Q Okay. And did you reimburse him for the
3 tickets?

4 A We always tried to reimburse him, always.

5 Q Okay. But you didn't?

6 A He wouldn't take -- he doesn't take the
7 money. He won't take it. He doesn't cash -- no, he
8 didn't.

9 Q Okay. Who went to the concert from your
10 family?

11 A Me and the girls, but I don't remember which
12 girls.

13 Q Okay. And you're saying that no one from
14 Brad Mell's family attended?

15 A No.

16 Q How about the Zac Brown concert, when was
17 that?

18 A I don't remember the date.

19 Q Do you recall where it was?

20 A I feel like that one might have been at the
21 Garden -- maybe.

22 Q Do you recall how it came about that you
23 ended up getting tickets from Brad Mell for a Zac
24 Brown concert?

25 A I don't remember.

1 Q Did he give you the tickets?

2 A I don't remember. I mean, I think. I don't
3 remember.

4 Q Did you pay for the tickets?

5 A We always offered to pay, but he --

6 Q My question is a little bit different. Did
7 you pay for the tickets?

8 A No because he wouldn't accept payment.

9 Q And did Brad go to this concert, the Zac
10 Brown concert?

11 A He did.

12 Q Okay. And who from your family went to the
13 Zac Brown concert?

14 A I don't remember who exactly went.

15 Q Did you go?

16 A Yes.

17 Q Did Brad sit with you guys?

18 A Yes.

19 Q And you have no idea when this took place?

20 A I mean, it was warm. It was definitely
21 warm.

22 Q Was it in the summer or the warm time during
23 2017 or 2016?

24 A I don't remember.

25 Q How about the Garth Brooks concert?

1 A Yes.

2 Q Well, how did you get tickets to the Garth
3 Brooks concert from Brad Mell?

4 A Yeah. He came to the house and said he had
5 bought these tickets for another friend of his, but
6 his friend had actually already bought tickets. So he
7 couldn't use them and would we like them.

8 Q Were these tickets in a box or were any of
9 these tickets in a box as opposed to, you know, just
10 general --

11 A Yes.

12 Q Were they all in a box?

13 A Yes, it was a box, yes.

14 Q Okay. And did you pay for these tickets?

15 A No. We tried to return them. We refused
16 them. We offered to pay, and he would not take money.

17 Q Did you go to the concert?

18 A Yes.

19 Q Did Brad Mell go to the concert?

20 A He went with his friends, not us.

21 Q Okay. And who from your family went to the
22 concert?

23 A Maybe it was just me, and Tony, and BB, I
24 think.

25 Q Other than the flights and the concert

1 tickets, did Brad Mell give you or any of your family
2 members things of value or money?

3 MR. GREIFINGER: Objection. Are you
4 asking based on what she now knows or what she knew at
5 the time?

6 BY MR. PEARLSON:

7 Q I'm asking what you knew at the time, Ms.
8 Cannon. As of 2017, were you aware, other than the
9 flights and the concert tickets, of Mr. Mell giving
10 you or any of your family members anything -- any
11 money or things of value?

12 A Well, I know at some point I became aware of
13 the gifts he gave to Ella, yeah. I didn't find out
14 about all of them until --

15 Q When you found out about the gifts to Ella
16 -- first of all, you said gifts to Ella. What are you
17 talking about?

18 A He had given her some jewelry.

19 Q What kind of jewelry?

20 A A bracelet. I mean, eventually I'd found
21 out about the watch.

22 MR. GREIFINGER: I have to object.
23 Will you please clarify a time period when she became
24 aware of these things?

25 MR. PEARLSON: We're talking about

1 2017, Richard, I believe.

2 BY MR. PEARLSON:

3 Q Ms. Cannon, is that consistent with your
4 understanding of what we're talking about?

5 A Well, yes, but I don't remember -- yeah, but
6 I don't remember when.

7 Q Okay. But it was before you learned about
8 BB's relationship with Brad Mell, correct?

9 A Yes, some of them I definitely knew about
10 before then, yeah.

11 Q Did you ever tell her to return the gifts
12 she received from Brad Mell?

13 A Probably.

14 Q Well, not probably. Do you have a
15 recollection of --

16 A Yes.

17 Q -- telling her to return the gifts? What
18 did she say?

19 A I don't remember what she said, but she
20 didn't want to return them, I don't think.

21 Q Okay. When you learned about the gifts, did
22 you ask her what had happened with her relationship
23 with Brad Mell?

24 A No. I didn't ask her that question, no.

25 Q Did you wonder why Brad Mell was giving her

1 expensive gifts at the time?

2 A Well, no.

3 Q In terms of flying lessons, are you aware of
4 Brad, other than the flights we've talked about, are
5 you aware of Brad taking BB for any flight time to get
6 her more experience towards her pilot's license?

7 A Well, the one that you just asked me about,
8 to move for the president.

9 Q How about while she was taking flying
10 lessons, are you aware of any flights that she took
11 with Brad, where he would be teaching her how to fly?

12 A What do you mean during flying lessons? You
13 -- I don't understand.

14 Q Well, she started flying lessons in June of
15 2017, correct?

16 A Probably. I don't remember the date.

17 Q After she started flying lessons, are you
18 aware of Brad taking BB up in the plane to get
19 experience flying?

20 MS. SAMMONS: Besides the Princeton
21 trip she just testified to?

22 MR. PEARLSON: Diane, please stop with
23 the coaching.

24 BY MR. PEARLSON:

25 Q Laura, my question is --

1 MS. SAMMONS: You're just not being
2 clear. If you're being clear on the timeframe you're
3 talking about, it would be very helpful.

4 MR. PEARLSON: I was very clear. If we
5 read back the answer, we'll see that all you're trying
6 to do is coach the witness -- Diane --

7 MR. GREIFINGER: -- proper questions,
8 but you are confusing on this topic.

9 MR. PEARLSON: It wasn't confusing.

10 BY MR. PEARLSON:

11 Q Following June 2017, when she started flying
12 lessons, did she go flying with Brad Mell to gain
13 flight experience, yes or no?

14 A Well, I also asked the question before Diane
15 even asked it. Are you asking me about the flight
16 that I already talked to you about? That's the one I
17 knew about -- I asked you that before Diane even asked
18 you that.

19 Q Okay. Were there any flights beyond that
20 where you were aware of her --

21 A I don't remember any other flights.

22 Q You don't recall Brad texting you and asking
23 permission in September of 2017 to take her flying?

24 A I don't remember that, no.

25 Q Regardless of that, are you aware of her, at

1 any point in time, going up in a plane alone with Brad
2 Mell, following June of 2017?

3 MS. SAMMONS: Objection.

4 THE WITNESS: The Princeton one.

5 BY MR. PEARLSON:

6 Q In addition to the Princeton one?

7 A I don't remember any others.

8 Q Now, were you monitoring BB's social media
9 in any way in 2016 and 2017?

10 A So I was -- as I said, I was on their
11 account. So I could see what they were posting. I
12 was following them, so I could see everything they
13 were posting on there. But we had lots -- we had
14 conversations about social media often.

15 Q Okay. Were you aware that she became
16 friends or connected to Brad Mell on social media on
17 occasions?

18 A No.

19 Q And how about in 2017, did you ever review
20 the Verizon cell phone bills for your daughters to see
21 who they were speaking with?

22 A I reviewed -- I don't remember the date, but
23 I reviewed at one time.

24 Q And was there a time in 2017 when in
25 reviewing the Verizon bills, you noticed that BB was

1 in a lot of contact or frequent contact with Brad?

2 A So I think -- was it July? I don't remember
3 when I looked at -- I saw a couple -- a few calls,
4 yes.

5 Q Okay. And you knew Brad's number, correct?

6 A Yeah.

7 Q And what did you do when you saw BB was in
8 contact with Brad?

9 A I was upset and I asked her to stop.

10 Q So at that point -- at some point in the
11 summer of 2017 -- first of all, did it raise any
12 concerns for you that BB was now having independent
13 contacts with Brad?

14 A Well, I didn't know he was a pedophile. He
15 portrayed himself to our family as a very caring,
16 upstanding person, who cared about our family because
17 he did so much damage to our family. And he just
18 always portrayed himself as a very nice, kind person.
19 He always -- so no, I didn't like it, but I wasn't
20 thinking he was a pedophile.

21 Q Okay. Well, when you saw this contact
22 between Brad and BB, did you confront BB?

23 A Yes, yeah. I said yeah.

24 Q And can you tell us the substance of your
25 correct with BB in the summer of 2017 about Brad?

1 A Well, I don't remember it exactly. But I'm
2 sure I asked her, "What's going on? Why would you be
3 having contact with him?" And she said, "Flying,"
4 probably.

5 Q She said what?

6 A Flying. They're talking about flying.

7 Q Do you recall asking anything else about her
8 contacts with Brad?

9 A No. I mean, I asked her why. I mean, no.

10 Q Okay. Did you forbid her from having
11 further contact with Brad at that point?

12 A I asked her to stop.

13 Q Okay. What did she say?

14 A I believe she said she would stop.

15 Q Okay. And did you continue to monitor or
16 review her phone bills following that conversation?

17 A I don't remember if I reviewed them again.
18 I don't remember.

19 Q How about Brad, did you confront Brad after
20 learning that BB was in frequent contact with Brad
21 from the phone bills?

22 A I don't think I spoke to him about that
23 then, no.

24 Q Did you speak to him about BB at any point
25 at or around the time you learned of her phone

1 conversations or contacts with him?

2 A I don't remember.

3 Q Did there come a time in the summer of 2017,
4 after your review of the phone bills, where you
5 learned that BB had been alone with Brad?

6 A Yes.

7 Q Okay. How did you learn that?

8 A If I'm remembering correctly, I think I went
9 on my phone and I looked at Life360, and it either
10 wasn't on -- I think it wasn't on. Maybe her Life360
11 wasn't on -- she was sleeping over at a friend's
12 house.

13 Q Okay. And what did you do when it wasn't
14 on?

15 A I texted her and said, "Turn it on right
16 now."

17 Q Okay. How did you discover she was with
18 Brad?

19 A Well, when she turned it on -- I demanded
20 she turn it on. She was in a place that wasn't by her
21 friend's house and I asked her.

22 Q Where was she?

23 A She was driving on a road.

24 Q Where?

25 A Not far from the house. I think it was

1 Rattlesnake Bridge Road.

2 Q Okay. And why did that lead you to believe
3 that she was with Brad?

4 A No, I asked her.

5 Q What did you ask her?

6 A "What are you doing? What are you doing
7 there? What's going on. You're not where you're
8 supposed to be."

9 Q What did she say?

10 A She said -- well, she just started to tell
11 me that she was on her way to the airport.

12 Q She was on her way to the airport? Did you
13 ask her, "What are you doing going to the airport?"

14 A She had a flying lesson, I believe.

15 Q She told you she had a flying lesson?

16 A Yes, I believe. That's my memory.

17 Q So what led you to believe she was with
18 Brad?

19 A She told me.

20 Q She told you, "I'm with Brad and going for a
21 flying lesson"?

22 A Yes. I said, "Who are you with? What's
23 going on?"

24 Q Did you tell her, "Stop the car. Turn
25 around. Get right back here"?

1 A I probably drove over to the airport.

2 Q Well, do you recall what you did?

3 A Well, I got really, really upset. Really,
4 very upset.

5 Q Do you recall regardless of whether you were
6 upset, do you know if BB actually went on a plane with
7 Brad at that time?

8 A He's not her instructor, so she wouldn't
9 have been getting on a plane with Brad at that time.
10 She would have been getting on a plane with her
11 instructor, who is not Brad.

12 Q Did you ask her, "Why are you with Brad
13 then?"

14 A Yes, I did, yes. And they both lied to my
15 face.

16 Q Okay. And you didn't say to her, "Get away
17 from Brad" --

18 A Absolutely, I did, yes.

19 Q Okay. Did you send her a text message at
20 some point in the summer of 2017, saying something to
21 the effect of, "I love you, but I know where you were
22 last night"? Do you recall doing that?

23 A Yeah, yeah.

24 Q What caused you to send that text to BB?

25 A Wait, what was the date? Sorry, that had to

1 be that day I sent that.

2 Q It was that date? When you said, "I love
3 you, but I know where you were last night," what does
4 that mean? When you said that -- when you texted it
5 to her, what were you saying to her?

6 A I'm trying to remember. I don't remember.

7 Q Did it have something to do with Brad?

8 A I don't remember.

9 Q Okay. Well, do you recall there being a
10 night where you didn't know where she was? Strike
11 that. Do you recall having a discussion with her
12 about her whereabouts one night, other than the
13 discussion you just described?

14 A No. That would have -- I mean, no, I
15 usually knew where she was. Yeah.

16 Q When it says -- the text says, "I know where
17 you were last night," does that mean you were saying
18 the next day that, "I knew you weren't where you were
19 supposed to be"?

20 A I mean, I guess. I don't remember that
21 text.

22 Q Okay. Do you recall -- forget about the
23 text. Do you recall at any time waking up one day and
24 saying, "I know BB lied to me. She's not where she
25 was supposed to be the night before"?

1 A Ever? I mean, sorry, ever? Did I ever feel
2 that way?

3 Q Yeah.

4 A I don't -- I don't remember, I don't
5 remember.

6 Q Okay. Now, when you described that you
7 received Garth Brooks tickets, do you recall Brad
8 coming over to your house and apologizing to you and
9 your family when he delivered those tickets?

10 A Yes, crying, yes.

11 Q Okay. And he also brought over a couple
12 bottles of wine at the same time?

13 A No, I don't remember wine. Did he bring --
14 I don't remember wine.

15 Q And what did Brad say to you? What did you
16 think he was apologizing for?

17 A For what had happened with Ella, and what it
18 had done to our family.

19 Q Okay. Did he specifically say it was
20 related to Ella?

21 A Well, he always was apologizing about that
22 nonstop for as long as I've known him. So of course,
23 that was the only thing he had to apologize for.

24 Q Okay. Do you have any idea when he and Ella
25 actually broke off their relationship?

1 A I don't know exactly when that was, no.

2 Q Do you --

3 A She tried for a very long time. He just
4 would not let it end.

5 Q Okay. That's what she told you, right?

6 A That's the truth.

7 Q Okay. Well, that's what she told you?

8 A That's what I -- whatever. Yes.

9 Q And as you sit here today, you have no idea
10 of when their relationship actually ended, their
11 physical, inappropriate relationship ended?

12 A No, I don't.

13 Q Okay. What did Brad say when he apologized?

14 A I mean, I don't remember obviously word for
15 word, but it was just how sorry he was for the trouble
16 that he's caused. And he loves our family, loves us
17 so much, such great people, and just how sorry he is.
18 Just very sorry.

19 Q And then he gave you the ticket and left?

20 A Yeah. I mean, yeah, we felt bad for him, of
21 course, because we believed he was a kind person at
22 the time. And we felt very bad for him because grown
23 men don't cry that often. And I just -- I felt bad.
24 But yeah, he just gave us the tickets and I guess he
25 left. I don't remember. But yeah.

1 Q And you took the tickets and used them,
2 right?

3 A We tried to give them back. We tried to pay
4 him for them. He said, "They're going to go to
5 waste," so yes, we used them.

6 Q Okay. Now, I believe you testified that at
7 some point in 2017, and I believe you said it was
8 December of 2017, you learned that Brad and BB also
9 had a relationship, correct?

10 A I wouldn't use the word "relationship" ever
11 for BB.

12 Q Okay.

13 A Sexual assault or sexual abuse, whatever you
14 want to use, but do not -- please don't use that word.

15 Q Well, at some point in 2017, you learned
16 that they had had sexual relations?

17 A Yes.

18 Q Okay. Can you tell us how you learned about
19 that?

20 A Her school called -- the dean, I guess,
21 called and said, "There's been a picture turned over,"
22 picture or pictures, I don't remember. "And it's a
23 picture of BB with an older man without tops on," I
24 believe.

25 Q Okay. And prior to that, had you had any

1 inkling at all, any reason to suspect that Brad had a
2 relationship -- strike the term relationship -- had
3 engaged in sexual relations with your daughter, BB?

4 A No. Of course not. No.

5 Q Okay. So that was the first time you had
6 any inkling at all?

7 A About a sexual relationship? Yes.

8 Q Okay. When you were told about this photo,
9 who did you think it was?

10 A I didn't know who it was.

11 Q Do you recall telling Anthony that you
12 thought it was Brad?

13 A I mean, she's -- yeah because he's the only
14 adult person that she'd been with any time ever.

15 Q Okay. When you say the only adult person
16 she had been with any time ever --

17 A Man -- man.

18 Q He was the only adult man that she had been
19 alone with, right?

20 A Yeah, they flew together that time. I don't
21 know when. I mean, I don't know.

22 Q Okay. And that was before you saw the
23 picture or any text, right?

24 A What picture? What are you talking about?
25 The picture that was turned in to the school?

1 Q You told Anthony, even before you went to
2 the school, that you thought it might be Brad.

3 A I was not sure. But I said, "Oh my gosh, it
4 could be."

5 Q Now, you mentioned the Smith's in your prior
6 testimony. They were close friends of yours, right?

7 A Well, BB and their daughter were very close.
8 We were not as -- not super close, but we were
9 friendly.

10 Q And did you talk at all to the mother, the
11 Smith mother at all, about BB and a potential
12 relationship she had with an older man?

13 A No --

14 MS. SAMMONS: When? Objection.

15 THE WITNESS: Ever? A potential
16 relationship? No.

17 BY MR. PEARLSON:

18 Q When did you -- after you got the call from
19 the school, what happened next?

20 A I called Tony, I believe, yeah.

21 Q Okay. And what did you say?

22 A I said, "Sit down because I have
23 life-altering news." And I said, "There's a picture
24 of BB and an adult male without shirts on that was
25 turned over to the school."

1 Q Did either of you talk about confronting
2 Brad?

3 A We didn't know at that time if it was Brad.

4 Q Okay. When did you learn it was Brad?

5 A After I got BB from school.

6 Q Okay. And when you picked up BB from
7 school, did you have any discussions with BB about
8 what was going on in that picture?

9 A I mean, I spoke to her about what was going
10 on. I don't know if I asked specifically about that
11 picture, no.

12 Q Did you look at the picture?

13 A No. I've never seen the picture.

14 Q Okay. So describe for us, on the car ride
15 home, I assume, with BB or right after you pick her up
16 from school, what was the nature of your conversation
17 with BB?

18 A Well, BB was hysterical. She asked me to
19 take her to the hospital because she was not okay.
20 And as we were driving, I -- we talked. I calmed her
21 down. And we went home, and she just told me that,
22 yeah, they had an inappropriate relationship.

23 Q Okay. When you say inappropriate
24 relationship, what specifically did she say about the
25 nature of their relationship?

1 A We didn't talk like that in those details.
2 I knew, obviously, something was very wrong. I didn't
3 say -- she's hysterical. She's hysterical. I didn't
4 ask her, "Well, what did you do? Give me the
5 details." It wasn't that conversation.

6 Q Okay. Did you have that conversation later
7 on with BB?

8 A Bits and pieces. It's not a one-time sit
9 down. You talk gently, slowly, little things come
10 out. And that's the way it went.

11 Q In putting together those bits and pieces
12 from the conversation, how long had the relationship
13 been going on?

14 A I mean, I don't remember what she told be at
15 the time about the length of it. I don't remember.

16 Q Were you interviewed -- at some point did
17 you go to law enforcement with respect to this?

18 A Yeah.

19 Q And were you interviewed by the Hunterdon
20 County Prosecutor's Office?

21 A Yes.

22 Q And was that videotaped, that interview?

23 A I think, probably, yeah.

24 Q Do you believe you told the truth to the
25 Hunterdon County Prosecutor's Office?

1 A I believe I told 100 percent the truth.

2 Q Okay. And do you believe that your
3 recollection would have been fresher back then than it
4 is now?

5 A I mean, probably, yeah.

6 MR. PEARLSON: Okay. Can we just take
7 a quick break? I just want to reorganize. Basically
8 like five minutes, and then I have some documents to
9 show her, and I'll be done. I'm not going to say I'll
10 be done very quickly. I'm just saying I'm moving onto
11 the documents now.

12 MR. GREIFINGER: Let me just ask you
13 this, Ross: Do you anticipate finishing today? And if
14 it's going to be two sessions, maybe we can all talk
15 about when we're going to break this session.

16 MR. PEARLSON: I anticipate --

17 THE REPORTER: May I take us off the
18 record while we discuss?

19 MR. GREIFINGER: Sure.

20 THE REPORTER: Okay, thank you. Off
21 the record at 2:17 p.m.

22 (Off the record.)

23 THE REPORTER: All right. We're back
24 on the record at 2:29 p.m. Please go ahead, Counsel.

25 MR. PEARLSON: Ms. Cannon, I'm going to

1 show you what's been marked for identification as
2 Laura Cannon 2.

3 (Laura Cannon Exhibit 2 was marked for
4 identification.)

5 BY MR. PEARLSON:

6 Q It's a group of documents, if you look
7 through it, just the cover page, that is you were
8 asked to produce certain documents in response to a
9 subpoena. And this is the response produced by your
10 counsel. Do you see that?

11 A Yes.

12 MR. PEARLSON: Okay. I'm going to turn
13 to Page 1A of that document, if we could blow that up.
14 Yeah, zoom in.

15 BY MR. PEARLSON:

16 Q Okay. Let's scroll through the -- if you
17 don't mind, Ms. Cannon, I'm going to ask you just to
18 look over this document, and you tell us what you're
19 able to read. It's a two-page document. I just want
20 you to look through it. I'm going to ask you some
21 questions about it.

22 Just tell us if we're going too fast or if
23 you're able to follow it, okay?

24 Okay, Ms. Cannon. Were you able to read
25 that?

1 A Yes.

2 Q Okay. Do you recognize that text?

3 A No. I mean, I recognize it that I submitted
4 it, but I -- that wasn't my phone.

5 Q Okay. Caroline, it says Caroline at the
6 top. It's your testimony as you sit here today that
7 you never used the pseudonym Caroline for Brad?

8 A Yes, 100 percent, never.

9 Q Okay. Do you recognize this, now that
10 you've seen it, as it's a text from Brad to you?

11 A Well, I don't know if I ever received that.
12 That's not my -- I've never used the name Caroline.

13 Q Okay. Do you have any understanding as to
14 why your counsel produced this in response to a
15 subpoena?

16 A I mean, I guess we just -- I don't know,
17 gave everything that -- this must -- maybe came from
18 Ella. I don't know.

19 Q But as you sit here today, you have no
20 recollection of Brad sending you a text -- this text
21 --

22 A I mean, I don't remember that text, but --
23 to me.

24 Q Okay. Do you recall Brad -- I mean, first
25 of all it says, "Hi, Laura."

1 A Yeah.

2 Q Do you see that it's addressed to you?

3 A Yeah, I see, yeah.

4 Q Okay. And it says, "Laura, would mind
5 giving Ella a hug, wink, or just an I love look for
6 me. See, today is Kim and my wedding anniversary and
7 we are going to dinner. Ella knows this and is so
8 sad." Do you recall Brad ever asking you to relay a
9 message, a hug, a wink, or just an I love look to
10 Ella?

11 A I don't remember.

12 Q Do you think you would remember that if it
13 happened?

14 A It was a long time ago. I don't know.

15 Q Do you know when Brad and Kim's wedding
16 anniversary is?

17 A No, I don't.

18 Q Do you remember having any discussions with
19 either Brad or Ella that Ella was going to be sad
20 because Brad was going out with his wife for --

21 A No.

22 Q -- dinner?

23 A No, no, no. I don't remember that. I don't
24 remember.

25 Q Okay. Do you recall Brad texting you and

1 saying, "Ella and I have spoken a lot, and I need to
2 reevaluate everything after she heads off." Do you
3 remember him communicating something like that to you?

4 A No.

5 Q Did you ever speak to Brad about Ella going
6 to college?

7 A I mean, we might have spoken about her going
8 to college, given that our children were going to the
9 same school.

10 Q Do you recall in particular speaking about
11 that you were both going to miss Ella when she went
12 away to school?

13 A No, I don't remember that.

14 Q Okay. It talks about a trip that Ella was
15 on. Do you recall Ella having a trip towards the end
16 of the summer of 2016?

17 A I don't remember. I don't remember if she
18 was on a trip.

19 Q And what was your understanding of the
20 relationship between Brad and Ella when she headed off
21 to college?

22 A I mean, I don't remember exactly where their
23 relationship was at that time exactly. I don't
24 remember.

25 Q Okay. Do you remember Brad ever asking you

1 to relay a message from him to Ella?

2 A I don't remember him doing that.

3 Q Did you ever relay a message to Ella from
4 Brad?

5 A Did I ever do that?

6 Q Yes.

7 A Not that I remember, no.

8 Q Okay. And at the bottom of the second page,
9 it indicates that this was from Brad to you, right?
10 "Thank you from the bottom of my heart" --

11 MR. GREIFINGER: -- next sentence,
12 please.

13 THE WITNESS: "I love you, El."

14 BY MR. PEARLSON:

15 Q No. So it says, "You really are so sweet
16 for letting reach out. Thank you from the bottom of
17 my heart. Much love, Brad." Do you see that? Do you
18 recall Brad ever thanking you for letting him contact
19 -- you reaching out to Ella on his behalf?

20 A No --

21 MR. GREIFINGER: You're taking a
22 sentence out of context. All you have to do is read
23 the next sentence, and it's -- it shows that the
24 question is erroneous.

25 //

1 BY MR. PEARLSON:

2 Q Ms. Cannon, isn't that the message he was
3 trying to send to your daughter? "I love you, El.
4 Hope you -- just wanted you to know how much I care
5 about you, and I don't want you sad. I assume you
6 will get this while I am at dinner. Just know I am
7 only thinking of you." Isn't that the message that
8 Mr. Mell was trying to send to Ella?

9 MS. SAMMONS: Objection.

10 THE WITNESS: I mean, that's what this
11 says. I mean, that's what he wrote here, I guess,
12 yeah.

13 BY MR. PEARLSON:

14 Q Okay. And again, as you sit here today, you
15 have no recollection of this text, or who Caroline is,
16 or why Brad would have drafted a text to Caroline,
17 that's really to you?

18 MS. SAMMONS: Objection.

19 THE WITNESS: Caroline was never -- I
20 never had Caroline on my phone ever.

21 MR. PEARLSON: Okay.

22 MR. WHALEN: Ross, could I ask for
23 clarity? I think you're referring to this as a text
24 message. We believe it's a Snapchat message.

25 MR. PEARLSON: I'm sorry. Were you

1 aware -- thank you.

2 THE WITNESS: I don't use Snapchat.
3 I've never used Snapchat. I've never Snapchatted
4 anybody in my life.

5 BY MR. PEARLSON:

6 Q Okay. And again, you're not aware of on any
7 form of social media or text Brad using the name
8 Caroline as a pseudonym or Ella using the name
9 Caroline as a pseudonym for him?

10 A I don't know what does -- I don't know what
11 she did.

12 Q Okay. Can we turn to Page 3 of the
13 document? It's an email. Ms. Cannon, I'm going to
14 ask you to look at Page 3 of your document production.

15 A Yep.

16 Q I'll ask you if you recognize that as an
17 email from you to Brad Mell. Do you see that?

18 A In response to the one he sent to me, yes.

19 Q Okay. And that was your email at the time?

20 A The email address, you're saying?

21 Q Yeah, at the top of the page.

22 A Yes.

23 Q And you see that you also copied Ella on it?

24 A No. He copied Ella on it. That's how I
25 responded.

1 Q But you responded to all, right?

2 A Yes.

3 Q Okay. And in responding to all, you also
4 responded to Ella, right?

5 A Yes.

6 Q And you thanked him for sending an
7 interesting article from the Times. Isn't that right?

8 A Yes.

9 Q And you said in the email that it was good
10 for Ella to read this article, right?

11 A Maybe. Did I say --

12 Q The last line of the email, "Good for Ella
13 to read." Do you see that?

14 A Oh, yes. I just saw it.

15 Q And this is six months after you became
16 aware of their inappropriate relationship, correct?

17 A Mm-hmm.

18 Q That's a yes, right?

19 THE REPORTER: Is that a yes?

20 THE WITNESS: Yes. I'm sorry. Yes.

21 BY MR. PEARLSON:

22 Q If you'll turn to Page 12 of the documents.
23 Okay. Do you see this document is an email from Brad
24 to you and -- well, to Ella. Do you see that?

25 A Yes.

1 Q Are you "the Awesome Mom," is that you?

2 A Yes. That's Ella's name for me, not his
3 name for me.

4 Q Okay. Does that indicate that this email
5 chain, whatever the source of the origin, came from
6 Ella because she's using your --

7 A No, no. The source came from Brad to Ella.

8 Q Okay. Well, how is it the name "the Awesome
9 Mom," if that's your name, how did that come up on
10 this email?

11 A I have no idea. I don't know. But that was
12 from Brad to Ella.

13 Q Okay. And Ella has a heart next to it. You
14 see that?

15 A Yeah. That's not for Brad. I think she has
16 it on my phone right now.

17 Q Okay. So when Ella uses the email, that
18 heart comes up on your phone?

19 A That's a text.

20 Q A text?

21 A Yes.

22 Q So when Ella texts you, it comes up as Ella
23 with a heart?

24 A Yes.

25 Q And when she texts you, it comes up as "the

1 Awesome Mom"?

2 A Yes.

3 Q Okay. And you see the date of this text is
4 December of 2016?

5 A Yes.

6 Q And it's about college endowments?

7 A Yes.

8 Q And then Brad tells you, "This is why Colby
9 wants me on their investment committee." Do you see
10 that?

11 A Yes.

12 Q Are you aware of any connections Brad had
13 with the administration at Colby?

14 A No.

15 Q And any idea why he would be sending you, in
16 December of 2016, something about Colby's college
17 endowments?

18 MS. SAMMONS: Objection. She didn't
19 testify that he sent this to her.

20 BY MR. PEARLSON:

21 Q Okay. Isn't that what it is? Didn't Brad
22 send this to you and Ella?

23 A He might have. Yeah, maybe. Yeah, maybe.

24 Q Okay. And then Brad at the bottom says,
25 "Miss you guys." Do you see that?

1 A Yep.

2 Q Okay. We'll turn to 23A. Okay. Ms.

3 Cannon, I'd like you to focus -- can we blow it up a
4 little or zoom in and focus on the top part? Now, Ms.
5 Cannon, this appears to be a deposit slip for a Chase
6 Bank account. Do you see that?

7 A Yes.

8 Q Okay. Did you have a Chase Bank account in
9 2017?

10 A Yes.

11 Q Okay. You see the date of the deposit is
12 July 27, '17?

13 A Yes.

14 Q Is that in your handwriting?

15 A No.

16 Q Okay. Do you see the name "Laura Cannon,"
17 where it is --

18 A Yes.

19 Q Is that in your handwriting?

20 A No.

21 Q Okay. And you see that the total amount of
22 the deposit is \$25,000?

23 A Yes.

24 Q Okay. If we scroll down to the next part of
25 the document, it shows a check payable to cash. And

1 it's for \$25,000 from Steven Bradley Mell. Do you see
2 that?

3 A Yes.

4 Q Do you recognize this as Mr. Mell's
5 handwriting on the check?

6 A I mean, I don't really know his handwriting,
7 but it's not my handwriting.

8 Q Okay. Do you recognize the signature?

9 A Not as my own, no.

10 Q Okay. You just know it's not yours?

11 A Yes.

12 Q Okay. Do you recall getting a -- having
13 this check deposited in your Chase account in July of
14 2017?

15 A Well, I found out about it afterwards, yes.

16 Q Okay. And if you can turn to the last page
17 of the document, we're going to scroll to -- there's a
18 signature there. You can see it?

19 A Yes.

20 Q Is that your signature?

21 A No.

22 Q Okay. So you said you found out about it.
23 How long after the deposit did you find out about it?

24 A Yes. I don't remember how long after.

25 Q Did you -- is a \$25,000 deposit a large

1 deposit in your account?

2 A Yes --

3 MR. GREIFINGER: Objection.

4 THE WITNESS: Oh, sorry.

5 MR. GREIFINGER: You can answer.

6 BY MR. PEARLSON:

7 Q And do you regularly receive bank statements
8 from Chase for your account?

9 A Actually, I don't know if I do. Not paper
10 ones. No, I don't think I do.

11 Q Do you look at your account statements on a
12 regular basis from your bank?

13 A Not on a regular basis, no. I mean -- no.
14 I mean, I check my accounts every now and then, but I
15 don't look at statements all the time, no.

16 Q Okay. So when did you discover that \$25,000
17 had been deposited in your account by Brad Mell?

18 A I don't remember when I discovered it.

19 Q What did you do when you discovered it?

20 A I told him that I could not keep that money,
21 that I'd write him a check or I wrote him a check.
22 And he said, "I'm not cashing that check. I'll never
23 cash that check." And I said, "Then I'm going to put
24 the money in your mailbox -- cash in your mailbox."
25 And he just sort of laughed it off like I wasn't

1 serious. And I said, "I can't -- I'm not keeping that
2 money. I cannot keep that money."

3 Q Did he tell you why he had written out a
4 check and just deposited -- first of all, do you know
5 how Brad Mell got a deposit slip for your checking
6 account?

7 A No. No idea. Ask him how he did it. I
8 have no idea.

9 Q Okay. And so when you called him up, did
10 you ask him, "Why did you deposit \$25,000 in my
11 account?"

12 A I don't remember if asked him why. I don't
13 remember.

14 Q Do you recall if he told you why?

15 A I don't recall if he told me why.

16 Q Okay. What was the ultimate resolution of
17 the \$25,000 that were deposited in your Chase account?

18 A Yeah. It sat in my account, and I didn't
19 spend it.

20 Q Is it still in your account?

21 A No. It's at my -- it's in Richard's escrow
22 account.

23 Q Okay. And you have no recollection of when
24 you had that discussion with Brad about the \$25,000?

25 A I don't remember when, no.

1 Q And it was just sitting in your account
2 until the filing of this lawsuit from --

3 A It sat in my account for years, years. He
4 was in jail by the time I transferred some of it over
5 to another account, and then put it back, and then
6 gave it to Richard. But it never was touched and he
7 was far and removed, and he was far into jail.

8 MR. PEARLSON: Ms. Cannon, I'm going to
9 show you now what's been marked as Exhibit 3, Laura
10 Cannon 3.

11 (Laura Cannon Exhibit 3 was marked for
12 identification.)

13 BY MR. PEARLSON:

14 Q That is your husband's response to his
15 subpoena. We'll start with the cover page. Okay, Ms.
16 Cannon. I'm going to show you some documents now that
17 were produced by your husband in response to the
18 subpoena served on him. We can turn to Page 9. Can
19 you take a look at this text?

20 A Sorry. Yeah. Yeah.

21 Q Okay. I'm just going to ask you about a
22 couple of statements. This is a text from Brad Mell
23 to you, correct?

24 A Yeah. I guess so.

25 Q This is the April after you discovered his

1 relationship with BB, right?

2 A I think so, yes.

3 Q Okay. And it says that -- he says, "I want
4 to give you a head's up that Kim has the evidence of
5 you coming over to the house on a number of occasions,
6 backed up by the cleaning people." My question is:
7 Did you go over to Brad Mell's house on a number of
8 occasions?

9 A I think twice, probably.

10 Q And why did you go over to Brad Mell's house
11 twice?

12 A I can't remember the reasons, but he always
13 asked me over for a specific reason, maybe to pick up
14 hockey gear or something specific. I don't remember
15 what the reasons were, but usually it was very
16 specific.

17 Q Okay. And you're saying it was only twice
18 you went over to his house?

19 A I remember twice. Yeah, probably twice. I
20 don't know for sure, but it wasn't very often.

21 Q It says here -- Brad says, "They also
22 witnessed you coming out of the master bedroom with
23 me." Were you ever in Mell's master bedroom?

24 A He wanted to -- he asked me to tour the
25 house, to see the entire house. I'm in real estate.

1 And he also was bragging because he liked his house so
2 much. And so he walked me through the entire house.
3 I was in his master bedroom for a total of four
4 seconds, five seconds.

5 And I know he also claims there's a tape.
6 So if he'd like to show the tape, I'd love that. Show
7 the tape of me, fully dressed, four seconds in, four
8 seconds out. That'd be great.

9 Q Okay. I'll move to strike that part as
10 nonresponsive.

11 MS. SAMMONS: Objection.

12 BY MR. PEARLSON:

13 Q When was the visit to Brad Mell's house that
14 you just described?

15 A I don't remember when. For the real estate
16 tour, walking? I don't remember.

17 Q Okay. Do you recall what the other occasion
18 was that you went to his house?

19 MR. GREIFINGER: I think you covered
20 two occasions.

21 THE WITNESS: I don't.

22 MR. PEARLSON: Just asking what the
23 purpose of the other visit was.

24 MR. GREIFINGER: And she's already
25 testified to the hockey gear and the real estate --

1 MR. PEARLSON: Well, no. She said it
2 might be to pick up hockey gear.

3 BY MR. PEARLSON:

4 Q Is that your recollection --

5 A I don't remember. I don't remember for
6 sure. I don't remember.

7 Q Okay. And then he says, "I guess we would
8 have the same issue with me leaving your house when it
9 was just the two of us." Did Brad Mell have visits
10 and come over to your house, where it was just the two
11 of you?

12 A Yes. He would reach out to me when he was
13 extremely upset, and say, "I need to talk to you."
14 And he would come over and talk to me about things he
15 was upset about.

16 Q Okay. How many times did he come over to
17 your house where it was just the two of you?

18 A I don't remember how many times.

19 Q And were you just accommodating him to be
20 nice to him?

21 A Yes.

22 Q Okay. And if we could turn to Page 12.
23 Okay. This is another Brad text to you. Is that
24 right?

25 A Mm-hmm.

1 MR. GREIFINGER: Is that a yes?

2 BY MR. PEARLSON:

3 Q Do you have any idea what he's talking about
4 when he says, "You guys trying to extort/blackmail me
5 for ten million"?

6 A No. We never extorted or blackmailed him
7 ever.

8 Q Did you ever make a demand that he pay you
9 \$10 million to make the case go away?

10 A No, never. Never.

11 Q Okay. It also says here, "They also know" -
12 - and he's talking about the Green's [ph]. That's the
13 family that you are -- is that a family friend?

14 A Yes. We were friendly with them, yeah.

15 Q And were they the ones who discovered the
16 text?

17 A No.

18 Q Okay. He says, "They also know you guys
19 supported the relationship, even when Ella and I were
20 in Florida, and the Greens [ph] were at the hotel next
21 to us, and Laura covered for Ella." Were you aware of
22 a trip that Ella and Brad made to Florida?

23 A I don't remember any trip with the Greens
24 [ph] or anything like that. I don't remember any --
25 like, I don't know what he's talking about with the

1 Greens [ph] and all that. I don't know.

2 Q Okay. So it's your testimony that you
3 didn't know about if Ella and Brad went to Florida
4 together and stayed in a hotel? You had no knowledge
5 of that at all?

6 A I don't remember that happening.

7 Q Do you remember Ella getting sick on a trip
8 to Florida, where she needed you to provide her some
9 information?

10 A I have no idea what you're talking about.

11 Q Okay. And you don't recall that the Greens
12 [ph] were --

13 A No.

14 Q -- at a hotel in Florida next to Laura and
15 Brad?

16 A Not Laura and Brad. Not Laura and Brad, if
17 you want to fix that, please.

18 Q I'm sorry, Ella and Brad.

19 A Yeah, I do not remember that.

20 Q At some point in time, did you become aware
21 that -- strike that. At some point, did you open an
22 investment account with Brad?

23 A Yes.

24 Q When did you do that?

25 A I mean, I know there's probably dates on the

1 papers. I don't remember the exact date, but I'm sure
2 we can look at them.

3 Q Let's turn to Item 23 in the documents.

4 MR. GREIFINGER: Whose documents are we
5 on now?

6 MR. PEARLSON: We're in the same group
7 of documents, which is Anthony's production.

8 MR. GREIFINGER: All right.

9 BY MR. PEARLSON:

10 Q So first of all, Ms. Cannon, my first
11 question is: Did you -- at the same time you opened an
12 account with Brad, did your daughter, Ella, also open
13 an account?

14 A Yes.

15 Q Okay. Do you recall how it came about that
16 both you and your daughter ended up opening investment
17 accounts with Brad?

18 A I believe he offered to, you know, invest
19 our money.

20 Q Okay. And do you recall when he did that?

21 A No.

22 Q Okay. And did you open those accounts?

23 A Yes.

24 Q Okay. And did you deposit money in those
25 accounts?

1 A No.

2 Q Was there money deposited in those accounts?

3 A Yes. I -- yes.

4 Q Okay. If we turn to Page 26 of that, I just
5 want to show you the top of the page. Do you see that
6 that's Ella's account?

7 A Yes.

8 Q Okay. And that's the year-end statement for
9 her?

10 A Okay. I see that, yeah.

11 Q Okay. For the year 2017? You see at the
12 top SH Mell Associates. Is that Brad's company?

13 A Yes.

14 Q Okay. You see the investment executive is
15 S. Bradley Mell?

16 A Yes.

17 Q And it's your testimony that you didn't
18 deposit any money in Ella's account on her behalf,
19 correct?

20 A No. Neither of us deposited any money in
21 those accounts, no.

22 Q Okay. If you'd turn to Page 27 of that
23 document -- actually, 29. On this Form 1099B, it
24 indicates that the account had \$25,019.25. Do you see
25 that?

1 A Yes.

2 Q Okay. Do you have any idea where that came
3 from?

4 A I know now where it came from, yeah.

5 Q Okay. Did you get statements from WH Mell
6 relating to your account?

7 A Probably, yeah.

8 Q Did you, you know, have to pay taxes in
9 connection with that account?

10 A Well, I didn't really open them because for
11 a long time -- for a while I didn't think there was
12 any money in them. So I really wasn't good about
13 opening my statements, honestly.

14 Q So is it your testimony that at no point
15 during 2017 did you open your account statements from
16 WH Mell Associates and look at the balance of your
17 account?

18 A No. It's not my statement. I'm saying I
19 didn't open lots of them. I might have opened one or
20 two. I might have.

21 Q Why did you open -- why did you and your
22 daughter open accounts with Brad?

23 A Because he said -- well, because he was a
24 very successful person in business and finance, and he
25 said, "Oh, why don't you guys open accounts and I'll

1 invest your money?"

2 Q Okay. And why did you open accounts and not
3 put any money in them?

4 A Well, because I didn't have any money yet to
5 put in it. I was waiting for my real estate money to
6 come.

7 Q Okay. And when did you learn that -- well,
8 first of all, did you learn at some point where the
9 money had come from that was deposited in your
10 account?

11 A Yes. I did learn at some point, yeah.

12 Q Okay. Let's take a step back first. Was
13 that -- at the time you discovered there was money in
14 your account, over \$25,000 in your account -- and it
15 was the same in Ella's account as well, correct?

16 A I believe so.

17 Q Did you discover that at the same time for
18 both accounts?

19 A I don't know. I don't remember. I have no
20 idea.

21 Q Okay. As you sit here today, do you recall
22 if at the time you discovered that there was \$25,000
23 in each account, that you knew the source of the funds
24 that were from each account that deposited the money?

25 A Honestly, I mean, I don't even know if I

1 just all of a sudden assumed it. But I guess I
2 figured it out eventually. I don't remember what I
3 thought at that time. It was -- I don't remember.

4 Q At some point in time, did you learn that
5 the money had come from Brad Mell?

6 A Yes.

7 Q More specifically, from his company, Aero
8 Care?

9 A No. I had no idea. I don't know where it
10 came from. I knew it -- I don't know. I don't know
11 that. I don't know.

12 Q So tell me what happened once you learned
13 that the money in your investment account had come
14 from Brad Mell.

15 A I decided that's not my account. I'm never
16 going to touch it. It's not my money. I don't want
17 it. I never ever touched it. And I just said in my
18 mind, "If he put it in there, he can take it out." I
19 didn't want the money.

20 Q Okay. And you didn't return the money to
21 him, correct?

22 A How do I return the money? How would I have
23 done that?

24 Q You could have cashed it out and written a
25 check.

1 A Well, I didn't want to touch it. I didn't
2 want to cash it out. I wanted it to just -- because
3 cashing it out literally would have been me -- I
4 didn't feel comfortable cashing it out. And I knew
5 perfectly well he would not cash a check. So I just
6 let it alone. I didn't -- it was not my account,
7 that's why I never ever put any of my own money in
8 there. Not my account.

9 Q Okay. And did you learn that the money in
10 this account had come from Brad Mell before or after
11 you learned about his relationship with BB?

12 A Before -- before, I think. Before, yeah, I
13 think. Yeah, before.

14 Q Okay. And where is that -- what is the
15 status of that account as we sit here today?

16 A Well, as I said, I left it alone. It's not
17 considered my account. But then during this, we -- it
18 went into orphaned accounts, I guess. And we're
19 trying to now get it back to go into Richard's escrow.

20 MR. PEARLSON: We'll go to Laura Cannon
21 4, which is Ella's response to the subpoena.

22 (Laura Cannon Exhibit 4 was marked for
23 identification.)

24 BY MR. PEARLSON:

25 Q So if we can just -- this is your daughter,

1 Ella's response to the subpoena served on her. I'd
2 just like to scroll down to Paragraph -- wait, go back
3 up -- Paragraph 1. And in that answer, she says, "She
4 also 26, which was a text to me from Mell under the
5 pseudonym Caroline." Do you see that?

6 A Yes.

7 Q You're saying that you never saw any texts
8 from Caroline?

9 A No. I never had Caroline in my phone ever.

10 Q Okay. Just a few more questions, Ms.
11 Cannon. The night that Brad came to pick you and Ella
12 up in New York City -- I'm sorry -- the night that you
13 did the helicopter ride, did you also go to dinner
14 that night with Brad?

15 A I don't -- I don't remember going to dinner,
16 no.

17 Q You didn't eat at the Ryland Inn? Ever
18 remember eating at the Ryland Inn with Brad and your
19 two daughters or your three daughters?

20 A No. I don't know -- I don't think it was
21 three. I do remember eating at the Ryland Inn, but I
22 don't know if it was the same day.

23 Q Okay. Do you remember Brad taking you and
24 any of your family to a dinner at the Ryland Inn?

25 A Yes.

1 Q And when did you do that?

2 A I don't remember.

3 Q Do you recall whether it was in connection
4 with any of the helicopter flights or plane flights
5 that we described?

6 A No, no.

7 Q Do you have any understanding as to why Brad
8 was taking you and any of your family members to the
9 Ryland Inn for dinner?

10 A I don't remember the reason why, no.

11 Q Okay. Do you recall whether Ella ever sent
12 you pictures of her and Brad together, when they were
13 in either New York City or together?

14 A I don't remember. I don't remember.

15 MR. PEARLSON: If I could just have a
16 minute to look over my notes. I think I might be
17 done.

18 THE REPORTER: Okay, Counsel. Let me
19 take us off the record at 3:06 p.m.

20 (Off the record.)

21 MR. PEARLSON: I have nothing further
22 at this time. Thank you.

23 THE WITNESS: Okay, thank you.

24 MR. GREIFINGER: Okay. I'm going to
25 suggest, I know other counsel had questions, unless

1 they want to say no questions, that we pick up another
2 day.

3 MR. DALY: I don't object to that.
4 That's fine. I have more than a few questions myself.

5 MR. WHALEN: Yeah. I mean, I do as
6 well, so I don't have an objection to that idea.

7 MR. MCENROE: I also agree, and I have
8 plenty of questions to ask the witness.

9 Since we're canceling Brad next week,
10 can we continue it next Thursday?

11 MR. PEARLSON: I think Brad was saying
12 that they won't give him any time to get on the -- I
13 believe --

14 MR. MELL: I can't get on the call next
15 week.

16 MR. PEARLSON: I see, I see. Okay.
17 All right. Then Richard, maybe transfer up a couple
18 days that work for you and Ms. Cannon. And then, you
19 know, we'll lock down Day 2.

20 MR. MCENROE: There's also a letter
21 that just came in from Plaintiff's office seeking to
22 adjourn the deposition of Mr. Mell, and requesting
23 that the deposition be held in person at the prison.
24 And I don't know logistically how that's going to
25 happen, but we'll see.

1 THE REPORTER: Let me make sure we're
2 completely off at 3:12 p.m. Off the record.

3 (Whereupon, at 3:12 p.m., the
4 proceeding was concluded.)

5 _____
6 LAURA CANNON

7
8 Subscribed and sworn to before me
9 this ____ day of _____, 2023.

10
11 _____
12 NOTARY PUBLIC

1 CERTIFICATE OF DEPOSITION OFFICER

2 I, HILARY BORNEMANN, the officer before whom
3 the foregoing proceedings were taken, do hereby
4 certify that any witness(es) in the foregoing
5 proceedings, prior to testifying, were duly sworn;
6 that the proceedings were recorded by me and
7 thereafter reduced to typewriting by a qualified
8 transcriptionist; that said digital audio recording of
9 said proceedings are a true and accurate record to the
10 best of my knowledge, skills, and ability; that I am
11 neither counsel for, related to, nor employed by any
12 of the parties to the action in which this was taken;
13 and, further, that I am not a relative or employee of
14 any counsel or attorney employed by the parties
15 hereto, nor financially or otherwise interested in the
16 outcome of this action.

17 Dated: May 18, 2023.

18 
19

20 HILARY BORNEMANN

21 Notary Public in and for the
22 State of New Jersey
23
24
25

1 CERTIFICATE OF TRANSCRIBER

2 I, ALEXIS GALLO, do hereby certify that this
3 transcript was prepared from the digital audio
4 recording of the foregoing proceeding, that said
5 transcript is a true and accurate record of the
6 proceedings to the best of my knowledge, skills, and
7 ability; that I am neither counsel for, related to,
8 nor employed by any of the parties to the action in
9 which this was taken; and, further, that I am not a
10 relative or employee of any counsel or attorney
11 employed by the parties hereto, nor financially or
12 otherwise interested in the outcome of this action.

13 Dated: May 18, 2023.

14
15 

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17 ALEXIS GALLO
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ERRATA SHEET
VERITEXT/NEW YORK REPORTING, LLC

CASE NAME: KRM 2012 Family Trust v. B.B. V. Mell, Et Al
DATE OF DEPOSITION: 5/4/2023
WITNESSES' NAME: Laura Cannon

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Laura Cannon
SUBSCRIBED AND SWORN TO BEFORE ME
THIS ____ DAY OF _____, 20__.

(NOTARY PUBLIC) MY COMMISSION EXPIRES:

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& 3:13,19 4:13 5:5 10:12 11:8	17 6:23,24 27:18 81:11,14 81:15 96:25 97:6 154:6 195:12	86:11,16 89:4 89:12 93:5 97:25 98:13,16 99:12,16 107:17,22 109:4 110:11 110:22 111:4 111:14,17,25 112:15 113:23 120:7,12,14,16 120:17 121:3 121:21 124:5 129:10 136:3,6 136:9,12 137:3 137:10,15,18 137:20 138:8 138:12,24 139:4 142:17 143:8,23 144:1 144:16,25 145:5 146:13 164:23 170:9 188:16 194:4 194:16	155:4,15 156:8 157:16,16 159:2,6 164:23 166:8 167:1 168:15 169:11 169:23 170:2,9 170:19,24 171:11,25 173:3 175:20 179:7,8,15 195:9 196:14 206:11 207:15
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New Jersey Rules Governing Civil Practice

Part IV, Rule 4:14

Depositions Upon Oral Examination

4:14-5. Submission to Witness; Changes; Signing

If the officer at the taking of the deposition is a certified shorthand reporter, the witness shall not sign the deposition. If the officer is not a certified shorthand reporter, then unless reading and signing of the deposition are waived by stipulation of the parties, the officer shall request the deponent to appear at a stated time for the purpose of reading and signing it. At that time or at such later time as the officer and witness agree upon, the deposition shall be submitted to the witness for examination and shall be read to or by the witness, and any changes in form or substance which the witness desires to make shall be entered upon the deposition by the officer with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness. If the witness fails to appear at the time stated or if the deposition is not signed by the witness, the officer shall sign it and state on the record the fact of the witness' failure or

refusal to sign, together with the reason, if any, given therefor; and the deposition may then be used as fully as though signed, unless on a motion to suppress under R. 4:16-4(d) the court holds that the reasons given for the refusal to sign require rejection of the deposition in whole or in part.

DISCLAIMER: THE FOREGOING CIVIL PROCEDURE RULES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY. THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE STATE RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

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